

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1346

By: Hasenbeck

AS INTRODUCED

An Act relating to child pornography; amending Sections 1 and 2, Chapter 181, O.S.L. 2024 (15 O.S. Supp. 2024, Sections 791 and 791.1), which relate to explicit materials and age verification methods; changing name of certain defined term; amending 21 O.S. 2021, Section 13.1, as amended by Section 1, Chapter 151, O.S.L. 2024 (21 O.S. Supp. 2024, Section 13.1), which relates to required service of prison sentence; changing name of certain unlawful acts; amending Sections 3, 4, 6, 7, 9 and 14, Chapter 366, O.S.L. 2024 (21 O.S. Supp. 2024, Sections 20C, 20D, 20F, 20G, 20I and 20N), which relate to the Oklahoma Sentencing Modernization Act of 2024; changing name of certain unlawful acts; amending 21 O.S. 2021, Section 843.5, as amended by Section 2, Chapter 151, O.S.L. 2024 (21 O.S. Supp. 2024, Section 843.5), which relates to penalties for child abuse offenses; changing name of certain unlawful acts; amending 21 O.S. 2021, Sections 1021.2, 1024.1 and 1040.12a, as last amended by Sections 1, 2 and 3, Chapter 103, O.S.L. 2024 (21 O.S. Supp. 2024, Sections 1021.2, 1024.1 and 1040.12a), which relate to the Oklahoma Law on Obscenity and Child Sexual Abuse Material; changing name of certain unlawful acts; clarifying scope and adding elements to certain defined terms; making certain standard inapplicable to specific crime; defining term; amending 21 O.S. 2021, Section 1040.80, as amended by Section 32, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2024, Section 1040.80), which relates to interactive computer service providers; updating statutory reference of certain defined term; amending 22 O.S. 2021, Section 40, as amended by Section 8, Chapter 151, O.S.L. 2024 (22 O.S. Supp. 2024, Section 40), which relates to definitions for certain victim protective orders; changing name of

1 certain unlawful acts; amending 22 O.S. 2021, Section
2 991h, as amended by Section 10, Chapter 151, O.S.L.
3 2024 (22 O.S. Supp. 2024, Section 991h), which
4 relates to sentencing powers of the court; changing
5 name of certain unlawful act; amending 57 O.S. 2021,
6 Section 138, as amended by Section 11, Chapter 151,
7 O.S.L. 2024 (57 O.S. Supp. 2024, Section 138), which
8 relates to credits for good conduct of inmates;
9 changing name of certain unlawful acts; amending 57
10 O.S. 2021, Section 332.16, as amended by Section 12,
11 Chapter 151, O.S.L. 2024 (57 O.S. Supp. 2024, Section
12 332.16), procedures for parole recommendations;
13 changing name of certain unlawful act; amending 57
14 O.S. 2021, Section 571, as last amended by Section
15 13, Chapter 151, O.S.L. 2024 (57 O.S. Supp. 2024,
16 Section 571), definitions of violent offenses;
17 changing name of certain unlawful acts; amending 57
18 O.S. 2021, Section 582, as amended by Section 14,
19 Chapter 151, O.S.L. 2024 (57 O.S. Supp. 2024, Section
20 582), which relates to the Sex Offenders Registration
21 Act; changing name of certain unlawful act; amending
22 74 O.S. 2021, Section 151.1, as amended by Section
23 15, Chapter 151, O.S.L. 2024 (74 O.S. Supp. 2024,
24 Section 151.1), which relates to the Internet Crimes
Against Children (ICAC) Unit of the Oklahoma State
Bureau of Investigation; changing name of certain
unlawful acts; expanding purpose of Unit to include
additional sex-related offenses; repealing 21 O.S.
2021, Section 13.1, as amended by Section 5, Chapter
59, O.S.L. 2024 (21 O.S. Supp. 2024, Section 13.1),
which relates to required service of prison sentence;
repealing 21 O.S. 2021, Section 843.5, as amended by
Section 6, Chapter 59, O.S.L. 2024 (21 O.S. Supp.
2024, Section 843.5), which relates to penalties for
child abuse offenses; repealing 21 O.S. 2021,
Sections 1021.2, 1024.1 and 1040.12a, as last amended
by Sections 9, 14 and 20, Chapter 59, O.S.L. 2024 (21
O.S. Supp. 2024, Sections 1021.2, 1024.1 and
1040.12a), which relate to the Oklahoma Law on
Obscenity and Child Sexual Abuse Material; repealing
22 O.S. 2021, Section 40, as amended by Section 34,
Chapter 59, O.S.L. 2024 (22 O.S. Supp. 2024, Section
40), which relates to definitions for certain victim
protective orders; repealing 22 O.S. 2021, Section
991h, as amended by Section 35, Chapter 59, O.S.L.
2024 (22 O.S. Supp. 2024, Section 991h), which
relates to sentencing powers of the court; repealing

1 57 O.S. 2021, Section 138, as last amended by Section
2 38, Chapter 59, O.S.L. 2024 (57 O.S. Supp. 2024,
3 Section 138), which relates to credits for good
4 conduct of inmates; repealing 57 O.S. 2021, Section
5 332.16, as amended by Section 39, Chapter 59, O.S.L.
6 2024 (57 O.S. Supp. 2024, Section 332.16), which
7 relates to procedures for parole recommendations;
8 repealing 57 O.S. 2021, Section 571, as last amended
9 by Section 40, Chapter 59, O.S.L. 2024 (57 O.S. Supp.
10 2024, Section 571), which relates to definitions of
11 violent offenses; repealing 57 O.S. 2021, Section
12 582, as amended by Section 41, Chapter 59, O.S.L.
13 2024 (57 O.S. Supp. 2024, Section 582), which relates
14 to the Sex Offenders Registration Act; repealing 74
15 O.S. 2021, Section 151.1, as amended by Section 47,
16 Chapter 59, O.S.L. 2024 (74 O.S. Supp. 2024, Section
17 151.1), which relates to the Internet Crimes Against
18 Children (ICAC) Unit of the Oklahoma State Bureau of
19 Investigation; and providing an effective date.

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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 181, O.S.L.
2024 (15 O.S. Supp. 2024, Section 791), is amended to read as
follows:

Section 791. As used in this act:

1. ~~"Child pornography"~~ "Child sexual abuse material" means the
same as used in Section 1024.1 of Title 21 of the Oklahoma Statutes;
2. "Child sexual exploitation" means the same as used in
Section 843.5 of Title 21 of the Oklahoma Statutes;

1 3. "Commercial entity" means a corporation, limited liability
2 company, partnership, limited partnership, sole proprietorship, or
3 other legally recognized entity;

4 4. "Digitized identification card" means a data file available
5 on any mobile device, which has connectivity to the Internet,
6 through a state-approved application that allows the mobile device
7 to download the data file from a state agency or any authorized
8 agent of a state agency that contains all of the data elements
9 visible on the face and back of a license or identification card and
10 displays the current state of the licensed or identification card;

11 5. "Distribute" means to issue, sell, give, provide, deliver,
12 transfer, transmit, circulate, or disseminate by any means;

13 6. "Harmful to minors" means the same as terms defined in
14 Sections 1040.75 through 1040.77 of Title 21 of the Oklahoma
15 Statutes;

16 7. "Internet" means the international computer network of both
17 federal and nonfederal interoperable packet switched data networks;

18 8. "Minor" means any person eighteen (18) years of age or
19 younger;

20 9. "News-gathering organization" means any of the following:

- 21 a. an employee of a newspaper, news publication, or news
22 source, printed or on an online or mobile platform, of
23 current news and public interest, while operating as
24 an employee as provided in this subsection, who can

1 provide documentation of such employment with the
2 newspaper, news publication, or news source, or
3 b. an employee of a radio broadcast station, television
4 broadcast station, cable television operator, or wire
5 service while operating as an employee as provided in
6 this subsection, who can provide documentation of such
7 employment;

8 10. "Obscene material" means the same as used in Section 1024.1
9 of Title 21 of the Oklahoma Statutes;

10 11. "Publish" means to communicate or make information
11 available to another person or entity on a publicly available
12 Internet website;

13 12. "Reasonable age verification methods" means verifying that
14 the person seeking access to the available material is eighteen (18)
15 years of age or older by using the following methods:

- 16 a. use of a digitized identification card as defined in
17 this section,
18 b. verification through an independent, third-party age
19 verification service that compares the personal
20 information entered by the individual who is seeking
21 access to the material that is available from a
22 commercially available database, or aggregate of
23 databases, that is regularly used by government
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1 agencies and businesses for purpose of age and
2 identity verification, or

3 c. any commercially reasonable method that relies on
4 public or private transactional data to verify the age
5 of the person attempting to access the material;

6 13. "Substantial portion" means when more than a third of the
7 total material available on the website meets the definition of
8 material harmful to minors as defined in this section; and

9 14. "Transactional data" means a sequence of information that
10 documents as exchange, agreement, or transfer between an individual,
11 commercial entity, or a third party used for the purpose of
12 satisfying a request or event. Transactional data may include, but
13 not be limited to, records from mortgage, education, and employment
14 entities.

15 SECTION 2. AMENDATORY Section 2, Chapter 181, O.S.L.
16 2024 (15 O.S. Supp. 2024, Section 791.1), is amended to read as
17 follows:

18 Section 791.1. A. Any commercial entity that knowingly and
19 intentionally publishes or distributes obscene material, or material
20 that depicts or promotes child ~~pornography~~ sexual abuse material or
21 child sexual exploitation, on the Internet may be held liable to an
22 individual for nominal damages, actual damages, court costs, and
23 reasonable attorney fees as ordered by the court.
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1 B. A commercial entity that has violated this act in a manner
2 that satisfies standards for imposition of punitive damages
3 elsewhere provided by law may be held liable to an individual for
4 punitive damages.

5 C. Individual claims that satisfy the generally applicable
6 standards for joinder or class action elsewhere provided by law or
7 rules of court, as applicable, may combine their claims in a single
8 action.

9 SECTION 3. AMENDATORY 21 O.S. 2021, Section 13.1, as
10 amended by Section 1, Chapter 151, O.S.L. 2024 (21 O.S. Supp. 2024,
11 Section 13.1), is amended to read as follows:

12 Section 13.1. Persons convicted of:

13 1. First degree murder as defined in Section 701.7 of this
14 title;

15 2. Second degree murder as defined by Section 701.8 of this
16 title;

17 3. Manslaughter in the first degree as defined by Section 711
18 of this title;

19 4. Poisoning with intent to kill as defined by Section 651 of
20 this title;

21 5. Shooting with intent to kill, use of a vehicle to facilitate
22 use of a firearm, crossbow or other weapon, assault, battery, or
23 assault and battery with a deadly weapon or by other means likely to
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1 produce death or great bodily harm, as provided for in Section 652
2 of this title;

3 6. Assault with intent to kill as provided for in Section 653
4 of this title;

5 7. Conjoint robbery as defined by Section 800 of this title;

6 8. Robbery with a dangerous weapon as defined in Section 801 of
7 this title;

8 9. First degree robbery as defined in Section 797 of this
9 title;

10 10. First degree rape as provided for in Section 1111, 1114 or
11 1115 of this title;

12 11. First degree arson as defined in Section 1401 of this
13 title;

14 12. First degree burglary as provided for in Section 1436 of
15 this title;

16 13. Bombing as defined in Section 1767.1 of this title;

17 14. Any crime against a child provided for in Section 843.5 of
18 this title;

19 15. Forcible sodomy as defined in Section 888 of this title;

20 16. Child ~~pornography~~ sexual abuse material or aggravated child
21 ~~pornography~~ sexual abuse material as defined in Section 1021.2,
22 1021.3, 1024.1, 1024.2 or 1040.12a of this title;

23 17. Child sex trafficking as defined in Section 1030 of this
24 title;

1 18. Lewd molestation of a child as defined in Section 1123 of
2 this title;

3 19. Abuse of a vulnerable adult as defined in Section 10-103 of
4 Title 43A of the Oklahoma Statutes;

5 20. Aggravated trafficking as provided for in subsection C of
6 Section 2-415 of Title 63 of the Oklahoma Statutes;

7 21. Aggravated assault and battery upon any person defending
8 another person from assault and battery; or

9 22. Human trafficking as provided for in Section 748 of this
10 title,

11 shall be required to serve not less than eighty-five percent (85%)
12 of any sentence of imprisonment imposed by the judicial system prior
13 to becoming eligible for consideration for parole. Persons
14 convicted of these offenses shall not be eligible for earned credits
15 or any other type of credits which have the effect of reducing the
16 length of the sentence to less than eighty-five percent (85%) of the
17 sentence imposed.

18 SECTION 4. AMENDATORY Section 3, Chapter 366, O.S.L.
19 2024 (21 O.S. Supp. 2024, Section 20C), is amended to read as
20 follows:

21 Section 20C. A. Upon the effective date of this act, Class A1
22 shall include the following criminal offenses:

23 1. Domestic abuse committed against a pregnant woman with
24 knowledge of the pregnancy and a miscarriage occurs or injury to the

1 unborn child, as provided for in subsection E of Section 644 of
2 Title 21 of the Oklahoma Statutes;

3 2. Administering poison with intent to kill, as provided for in
4 Section 651 of Title 21 of the Oklahoma Statutes;

5 3. Second degree murder, as provided for in paragraph 1 of
6 Section 701.8 of Title 21 of the Oklahoma Statutes;

7 4. Second degree murder by a person engaged in the commission
8 of a felony, as provided for in paragraph 2 of Section 701.8 of
9 Title 21 of the Oklahoma Statutes;

10 5. Kidnapping for the purpose of extorting money, as provided
11 for in subsection A of Section 745 of Title 21 of the Oklahoma
12 Statutes;

13 6. Sexual abuse of a child under twelve (12) years of age, as
14 provided for in subsection F of Section 843.5 of Title 21 of the
15 Oklahoma Statutes;

16 7. Sexual exploitation of a child under twelve (12) years of
17 age, as provided for in subsection I of Section 843.5 of Title 21 of
18 the Oklahoma Statutes;

19 8. Sexual abuse of a child under fourteen (14) years of age
20 subsequent to a previous conviction of sexual abuse of a child under
21 fourteen (14) years of age, as provided for in subsection K of
22 Section 843.5 of Title 21 of the Oklahoma Statutes;

1 9. Soliciting or aiding a minor to perform an obscene act, as
2 provided for in paragraph 1 of subsection B of Section 1021 of Title
3 21 of the Oklahoma Statutes;

4 10. Showing, exhibiting, loaning, or distributing to a minor
5 child obscene material or child ~~pornography~~ sexual abuse material
6 for purposes of inducing the minor to participate in an obscene act,
7 as provided for in paragraph 2 of subsection B of Section 1021 of
8 Title 21 of the Oklahoma Statutes;

9 11. Murder, maiming, robbery, rape, or arson committed in the
10 course of a riot, as provided for in paragraph 1 of Section 1312 of
11 Title 21 of the Oklahoma Statutes;

12 12. Burglary by the aid or use of any explosive, as provided
13 for in Section 1441 of Title 21 of the Oklahoma Statutes;

14 13. Place, manufacture, possess, display, or threaten to use
15 any explosive or incendiary device and personal injury results, as
16 provided for in Section 1767.1 of Title 21 of the Oklahoma Statutes;

17 14. Aggravated manufacturing a controlled dangerous substance,
18 as provided for in paragraph 3 of subsection G of Section 2-401 of
19 Title 63 of the Oklahoma Statutes; and

20 15. Using any explosive or blasting agent to kill, injure, or
21 intimidate any person or to damage any real or personal property and
22 personal injury results, as provided for in subsection B of Section
23 124.8 of Title 63 of the Oklahoma Statutes.

1 B. Any person convicted of a Class A1 criminal offense set
2 forth in this section shall be punished in accordance with the
3 corresponding penalties provided for in the Oklahoma Statutes.

4 SECTION 5. AMENDATORY Section 4, Chapter 366, O.S.L.
5 2024 (21 O.S. Supp. 2024, Section 20D), is amended to read as
6 follows:

7 Section 20D. A. Upon the effective date of this act, Class A2
8 shall include the following criminal offenses:

9 1. Accessory to murder in the first degree, as provided for in
10 paragraph 5 of Section 175 of Title 21 of the Oklahoma Statutes;

11 2. Aggravated assault and battery upon a police officer,
12 sheriff, deputy sheriff, highway patrolman, corrections personnel,
13 or any state peace officer that results in maiming, as provided for
14 in subsection B of Section 650 of Title 21 of the Oklahoma Statutes;

15 3. Solicitation for murder in the first degree, as provided for
16 in Section 701.16 of Title 21 of the Oklahoma Statutes;

17 4. Manslaughter in the first degree, as provided for in Section
18 711 of Title 21 of the Oklahoma Statutes;

19 5. Administration of poison, drug, or medicine by an
20 intoxicated physician to another person that causes the death of
21 such other person, as provided for in Section 712 of Title 21 of the
22 Oklahoma Statutes;

23 6. Aiding, assisting, or participating in the receipt,
24 possession, or exchange of money or thing of value from the

1 kidnapped person, as provided for in subsection B of Section 745 of
2 Title 21 of the Oklahoma Statutes;

3 7. Human trafficking for labor or commercial sex, as provided
4 for in subsection C of Section 748 of Title 21 of the Oklahoma
5 Statutes;

6 8. Female genital mutilation, as provided for in Section 760 of
7 Title 21 of the Oklahoma Statutes;

8 9. Robbery in the first degree, as provided for in Section 798
9 of Title 21 of the Oklahoma Statutes;

10 10. Conjoint robbery committed by two or more persons, as
11 provided for in Section 800 of Title 21 of the Oklahoma Statutes;

12 11. Robbery or attempted robbery with a dangerous weapon or
13 imitation firearm, as provided for in Section 801 of Title 21 of the
14 Oklahoma Statutes;

15 12. Wiring or equipping vehicles or structures with explosive
16 materials, things, or devices with intent to cause bodily injury or
17 death to another person, as provided for in Section 849 of Title 21
18 of the Oklahoma Statutes;

19 13. Aggravated possession of child ~~pornography~~ sexual abuse
20 material, as provided for in Section 1040.12a of Title 21 of the
21 Oklahoma Statutes;

22 14. Rape by instrumentation, as provided for in Section 1111.1
23 of Title 21 of the Oklahoma Statutes;

1 15. Rape in the first degree, as provided for in subsection A
2 of Section 1114 of Title 21 of the Oklahoma Statutes;

3 16. Compelling a woman to marry another person against her will
4 by force, menace, or duress, as provided for in Section 1117 of
5 Title 21 of the Oklahoma Statutes;

6 17. Maliciously, wantonly, or negligently removing, injuring,
7 or destroying any railroad or railroad equipment that results in the
8 death of another human being, as provided for in Section 1752 of
9 Title 21 of the Oklahoma Statutes;

10 18. Resisting or aiding in resisting the execution of process
11 during a state of riot or insurrection, as provided for in Section
12 107 of Title 22 of the Oklahoma Statutes;

13 19. Driving under the influence of alcohol or other
14 intoxicating substance after a previous conviction of murder in the
15 second degree or manslaughter in the first degree where a death was
16 caused as a result of driving under the influence of alcohol or
17 other intoxicating substance, as provided for in paragraph 5 of
18 subsection C of Section 11-902 of Title 47 of the Oklahoma Statutes;

19 20. Manufacturing or attempting to manufacture any controlled
20 dangerous substance or the possession of certain substances, as
21 provided for in paragraph 2 of subsection G of Section 2-401 of
22 Title 63 of the Oklahoma Statutes; and

23 21. Robbery or attempted robbery of controlled dangerous
24 substances from a practitioner, manufacturer, distributor, or agent

1 thereof, as provided for in subsection B of Section 2-403 of Title
2 63 of the Oklahoma Statutes.

3 B. Any person convicted of a Class A2 criminal offense set
4 forth in this section shall be punished in accordance with the
5 corresponding penalties provided for in the Oklahoma Statutes.

6 SECTION 6. AMENDATORY Section 6, Chapter 366, O.S.L.
7 2024 (21 O.S. Supp. 2024, Section 20F), is amended to read as
8 follows:

9 Section 20F. A. Upon the effective date of this act, Class B1
10 shall include the following criminal offenses:

11 1. Accessory to murder in the second degree, as provided for in
12 paragraph 5 of Section 175 of Title 21 of the Oklahoma Statutes;

13 2. Rescuing or attempting to rescue a prisoner charged or
14 convicted of a felony, as provided for in paragraph 1 of Section 521
15 of Title 21 of the Oklahoma Statutes;

16 3. Aiding suicide, as provided for in Section 813 of Title 21
17 of the Oklahoma Statutes;

18 4. Aiding suicide by furnishing the person with deadly weapons
19 or poisonous drugs, as provided for in Section 814 of Title 21 of
20 the Oklahoma Statutes;

21 5. Mingling poison, controlled dangerous substances, or sharp
22 objects harmful to human life with any food, drink, medicine, or
23 water, as provided for in Section 832 of Title 21 of the Oklahoma
24 Statutes;

1 6. Abuse, financial neglect, neglect, or exploitation by a
2 caretaker, as provided for in paragraph 1 of subsection B of Section
3 843.1 of Title 21 of the Oklahoma Statutes;

4 7. Exploitation of an elderly person or disabled adult, as
5 provided for in Section 843.4 of Title 21 of the Oklahoma Statutes;

6 8. Engaging in child neglect, as provided for in subsection C
7 of Section 843.5 of Title 21 of the Oklahoma Statutes;

8 9. Enabling child neglect, as provided for in subsection D of
9 Section 843.5 of Title 21 of the Oklahoma Statutes;

10 10. Forcible sodomy, as provided for in subsection A of Section
11 888 of Title 21 of the Oklahoma Statutes;

12 11. Sodomy by a person over eighteen (18) years of age upon a
13 person under sixteen (16) years of age, as provided for in paragraph
14 1 of subsection B of Section 888 of Title 21 of the Oklahoma
15 Statutes;

16 12. Sodomy upon a person incapable through mental illness or
17 unsoundness of mind to give legal consent, as provided for in
18 paragraph 2 of subsection B of Section 888 of Title 21 of the
19 Oklahoma Statutes;

20 13. Sodomy with any person by means of force, violence, or
21 threats of force or violence, as provided for in paragraph 3 of
22 subsection B of Section 888 of Title 21 of the Oklahoma Statutes;

23 14. Sodomy upon a person under the legal custody, supervision,
24 or authority of a state agency, county, municipality, or political

1 subdivision of the state, as provided for in paragraph 4 of
2 subsection B of Section 888 of Title 21 of the Oklahoma Statutes;

3 15. Sodomy upon a person at least sixteen (16) years of age but
4 less than twenty (20) years of age and who is a student of any
5 public or private secondary school, junior high, high school, or
6 public vocational school with a person eighteen (18) years of age or
7 older and who is employed by the same school system, as provided for
8 in paragraph 5 of subsection B of Section 888 of Title 21 of the
9 Oklahoma Statutes;

10 16. Sodomy upon a person who is unconscious, as provided for in
11 paragraph 7 of subsection B of Section 888 of Title 21 of the
12 Oklahoma Statutes;

13 17. Sodomy upon a person who is intoxicated by a narcotic or
14 anesthetic agent administered by or with the privity of the accused,
15 as provided for in paragraph 8 of subsection B of Section 888 of
16 Title 21 of the Oklahoma Statutes;

17 18. Procuring or causing the participation of a minor in child
18 ~~pornography~~ sexual abuse material or possessing, procuring,
19 manufacturing, selling, or distributing child ~~pornography~~ sexual
20 abuse material, as provided for in Section 1021.2 of Title 21 of the
21 Oklahoma Statutes;

22 19. Permitting or consenting to the participation of a minor in
23 child ~~pornography~~ sexual abuse material by a parent, guardian, or
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1 individual having custody, as provided for in Section 1021.3 of
2 Title 21 of the Oklahoma Statutes;

3 20. Buying, procuring, or possessing child ~~pornography~~ sexual
4 abuse material, as provided for in Section 1024.2 of Title 21 of the
5 Oklahoma Statutes;

6 21. Child ~~prostitution~~ sex trafficking, as provided for in
7 subsection B of Section 1029 of Title 21 of the Oklahoma Statutes;

8 22. Receiving or offering to agree to receive a child for
9 purposes of ~~prostitution~~ child sex trafficking, as provided for in
10 paragraph 2 of subsection A of Section 1087 of Title 21 of the
11 Oklahoma Statutes;

12 23. Transporting or aiding in the transport of a child for
13 ~~prostitution~~ child sex trafficking, as provided for in paragraph 3
14 of subsection A of Section 1087 of Title 21 of the Oklahoma
15 Statutes;

16 24. Permitting the ~~prostitution~~ child sex trafficking of a
17 child in any house, building, room, other premises, or any
18 conveyances under the control of a person, as provided for in
19 paragraph 2 of subsection B of Section 1087 of Title 21 of the
20 Oklahoma Statutes;

21 25. Causing, inducing, persuading, or encouraging a child by
22 promise, threats, violence, or any device or scheme to engage in
23 ~~prostitution~~ child sex trafficking, as provided for in paragraph 1
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1 of subsection A of Section 1088 of Title 21 of the Oklahoma
2 Statutes;

3 26. Keeping, holding, detaining, restraining, or compelling a
4 child to engage in ~~prostitution~~ child sex trafficking, as provided
5 for in paragraph 2 of subsection A of Section 1088 of Title 21 of
6 the Oklahoma Statutes;

7 27. Keeping, holding, detaining, restraining, or compelling a
8 child to engage in ~~prostitution~~ child sex trafficking for purposes
9 of compelling the child to pay, liquidate, or cancel any debts,
10 dues, or obligations incurred by the child, as provided for in
11 paragraph 3 of subsection A of Section 1088 of Title 21 of the
12 Oklahoma Statutes;

13 28. Permitting the keeping, holding, detaining, or restraining
14 of a child for ~~prostitution~~ child sex trafficking in any house,
15 building, room, other premises, or any conveyances under the control
16 of a person, as provided for in paragraph 2 of subsection B of
17 Section 1088 of Title 21 of the Oklahoma Statutes;

18 29. Advocating the revolution, sabotage, force and violation,
19 sedition, treason, or overthrow of the government of the United
20 States, as provided for in Section 1266 of Title 21 of the Oklahoma
21 Statutes;

22 30. Commit, attempt to commit, or aid in the commission of any
23 act intended to overthrow, destroy, or alter the government of the
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1 United States, as provided for in Section 1266.4 of Title 21 of the
2 Oklahoma Statutes;

3 31. Biochemical terrorism, as provided for in subsection D of
4 Section 1268.2 of Title 21 of the Oklahoma Statutes;

5 32. Biochemical assault when the person knows the substance is
6 toxic, noxious, or lethal to humans, as provided for in subsection C
7 of Section 1268.5 of Title 21 of the Oklahoma Statutes;

8 33. Second or subsequent conviction of using a firearm while
9 committing a felony, as provided for in subsection A of Section 1287
10 of Title 21 of the Oklahoma Statutes;

11 34. Discharging a firearm or other deadly weapon at or into a
12 dwelling or building used for public or business purposes, as
13 provided for in Section 1289.17A of Title 21 of the Oklahoma
14 Statutes;

15 35. Directing, advising, encouraging, or soliciting other
16 persons to commit acts of force or violence while participating in a
17 riot, as provided for in paragraph 4 of Section 1312 of Title 21 of
18 the Oklahoma Statutes;

19 36. Burglary in the first degree, as provided for in Section
20 1431 of Title 21 of the Oklahoma Statutes;

21 37. Seizing or exercising control of any bus by force or
22 violence or by threats of force or violence, as provided for in
23 subsection A of Section 1903 of Title 21 of the Oklahoma Statutes;

1 38. Using a dangerous or deadly weapon while seizing or
2 exercising control of a bus or when intimidating, threatening,
3 assaulting, or battering a bus driver, as provided for in subsection
4 C of Section 1903 of Title 21 of the Oklahoma Statutes;

5 39. Receiving, acquiring, and concealing proceeds derived from
6 unlawful activities in an amount of more than Fifty Thousand Dollars
7 (\$50,000.00), as provided for in paragraph 4 of subsection G of
8 Section 2001 of Title 21 of the Oklahoma Statutes;

9 40. Participating in racketeering activities, as provided for
10 in subsection A of Section 1403 of Title 22 of the Oklahoma
11 Statutes;

12 41. Acquiring or maintaining any interest in or control of any
13 enterprise or real property through racketeering activities, as
14 provided for in subsection B of Section 1403 of Title 22 of the
15 Oklahoma Statutes;

16 42. Using or investing any part of proceeds derived from
17 racketeering activities, as provided for in subsection C of Section
18 1403 of Title 22 of the Oklahoma Statutes;

19 43. Conspiring with others to commit unlawful racketeering
20 activities, as provided for in subsection D of Section 1403 of Title
21 22 of the Oklahoma Statutes;

22 44. Causing an accident resulting in great bodily injury while
23 driving under the influence of alcohol or other intoxicating
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substance, as provided for in paragraph 1 of subsection B of Section 11-904 of Title 47 of the Oklahoma Statutes; and

45. Trafficking in fentanyl or carfentanyl, or any fentanyl analogs or derivatives, as provided for in subparagraph a of paragraph 12 of subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes.

B. Any person convicted of a Class B1 criminal offense set forth in this section shall be punished in accordance with the corresponding penalties provided for in the Oklahoma Statutes.

SECTION 7. AMENDATORY Section 7, Chapter 366, O.S.L. 2024 (21 O.S. Supp. 2024, Section 20G), is amended to read as follows:

Section 20G. A. Upon the effective date of this act, Class B2 shall include the following criminal offenses:

1. Transport, move, or attempt to transport in this state any alien knowing that the alien has entered the United States in violation of law, as provided for in subsection A of Section 446 of Title 21 of the Oklahoma Statutes;

2. Conceal, harbor, or shelter from detection any alien in any place within this state knowing that the alien has entered the United States in violation of law, as provided for in subsection B of Section 446 of Title 21 of the Oklahoma Statutes;

3. Intentionally destroy, hide, alter, abscond with, or keep certain identification documentation of an individual for the

1 purpose of trafficking the individual, as provided for in subsection
2 C of Section 446 of Title 21 of the Oklahoma Statutes;

3 4. Allowing any person lawfully held in custody to escape or go
4 at large by a sheriff, deputy, coroner, clerk of a court, constable,
5 or other ministerial officer, as provided for in Section 532 of
6 Title 21 of the Oklahoma Statutes;

7 5. Kidnapping, as provided for in Section 741 of Title 21 of
8 the Oklahoma Statutes;

9 6. Causing, aiding, abetting, or encouraging a minor child to
10 distribute, dispense, possess, or manufacture a controlled dangerous
11 substance or a counterfeit or imitation controlled dangerous
12 substance, as provided for in Section 856.1 of Title 21 of the
13 Oklahoma Statutes;

14 7. Trafficking in children, as provided for in Section 866 of
15 Title 21 of the Oklahoma Statutes;

16 8. Photographing, publishing, distributing, or participating in
17 the preparation of child ~~pornography~~ sexual abuse material, as
18 provided for in subsection C of Section 1040.8 of Title 21 of the
19 Oklahoma Statutes;

20 9. Procuring another for the purpose of prostitution, as
21 provided for in Section 1081 of Title 21 of the Oklahoma Statutes;

22 10. Keeping, holding, detaining, or restraining against her
23 will a female in a house of prostitution, as provided for in Section
24 1085 of Title 21 of the Oklahoma Statutes;

1 11. Rape in the second degree, as provided for in subsection B
2 of Section 1114 of Title 21 of the Oklahoma Statutes;

3 12. Arson in the second degree, as provided for in Section 1402
4 of Title 21 of the Oklahoma Statutes;

5 13. Second or subsequent conviction of residing, either
6 temporarily or permanently, within a two-thousand-foot radius of a
7 public or private school, playground, park, licensed child care
8 center, family child care home, or residence of a victim by a person
9 who is required to register as a sex offender pursuant to the Sex
10 Offenders Registration Act, as provided for in subsection A of
11 Section 590 of Title 57 of the Oklahoma Statutes;

12 14. Second or subsequent conviction for residing with a minor
13 child by a person who is required to register as a sex offender
14 pursuant to the Sex Offenders Registration Act for an offense in
15 which a minor child was the victim, as provided for in subsection B
16 of Section 590 of Title 57 of the Oklahoma Statutes;

17 15. Breaking into and entering the dwelling house of a
18 defendant by a bail enforcer, as provided for in Section 1350.6 of
19 Title 59 of the Oklahoma Statutes;

20 16. Possessing a drug product containing ephedrine,
21 pseudoephedrine, or phenylpropanolamine with intent to use the
22 product as a precursor to manufacture methamphetamine or other
23 controlled substance, as provided for in subsection A of Section 2-
24 332 of Title 63 of the Oklahoma Statutes;

1 17. Aggravated trafficking of marijuana, as provided for in
2 subparagraph b of paragraph 1 of subsection C of Section 2-415 of
3 Title 63 of the Oklahoma Statutes;

4 18. Aggravated trafficking of cocaine, coca leaves, or cocaine
5 base, as provided for in subparagraph c of paragraph 2 of subsection
6 C of Section 2-415 of Title 63 of the Oklahoma Statutes;

7 19. Aggravated trafficking of heroin, as provided for in
8 subparagraph b of paragraph 3 of subsection C of Section 2-415 of
9 Title 63 of the Oklahoma Statutes;

10 20. Aggravated trafficking of amphetamine or methamphetamine,
11 as provided for in subparagraph c of paragraph 4 of subsection C of
12 Section 2-415 of Title 63 of the Oklahoma Statutes;

13 21. Aggravated trafficking of lysergic acid diethylamide (LSD),
14 as provided for in subparagraph b of paragraph 5 of subsection C of
15 Section 2-415 of Title 63 of the Oklahoma Statutes; and

16 22. Aggravated trafficking of phencyclidine (PCP), as provided
17 for in subparagraph b of paragraph 6 of subsection C of Section 2-
18 415 of Title 63 of the Oklahoma Statutes.

19 B. Any person convicted of a Class B2 criminal offense set
20 forth in this section shall be punished in accordance with the
21 corresponding penalties provided for in the Oklahoma Statutes.

22 SECTION 8. AMENDATORY Section 9, Chapter 366, O.S.L.
23 2024 (21 O.S. Supp. 2024, Section 20I), is amended to read as
24 follows:

1 Section 20I. A. Upon the effective date of this act, Class B4
2 shall include the following criminal offenses:

3 1. Concealing the birth or death of a child, as provided for in
4 Section 53 of Title 21 of the Oklahoma Statutes;

5 2. Assault, battery, or assault and battery with a sharp or
6 dangerous weapon, as provided for in Section 645 of Title 21 of the
7 Oklahoma Statutes;

8 3. Robbery in the second degree, as provided for in Section 799
9 of Title 21 of the Oklahoma Statutes;

10 4. Neglecting a vulnerable adult, as provided for in subsection
11 B of Section 843.3 of Title 21 of the Oklahoma Statutes;

12 5. Malicious harassment of another person based on that
13 person's race, color, religion, ancestry, national origin, or
14 disability, as provided for in Section 850 of Title 21 of the
15 Oklahoma Statutes;

16 6. Abandonment of a child under ten (10) years of age, as
17 provided for in Section 851 of Title 21 of the Oklahoma Statutes;

18 7. Abandonment of a wife or child under fifteen (15) years of
19 age, as provided for in Section 853 of Title 21 of the Oklahoma
20 Statutes;

21 8. Second or subsequent conviction for causing, aiding,
22 abetting, encouraging, soliciting, or recruiting a minor to
23 participate, join, or associate with a criminal street gang, as
24

1 provided for in subsection E of Section 856 of Title 21 of the
2 Oklahoma Statutes;

3 9. Incest, as provided for in Section 885 of Title 21 of the
4 Oklahoma Statutes;

5 10. Crime against nature, as provided for in Section 886 of
6 Title 21 of the Oklahoma Statutes;

7 11. Taking or enticing away any child under sixteen (16) years
8 of age with the intent to detain or conceal such child, as provided
9 for in Section 891 of Title 21 of the Oklahoma Statutes;

10 12. Indecent exposure, as provided for in paragraph 1 of
11 subsection A of Section 1021 of Title 21 of the Oklahoma Statutes;

12 13. Procuring, counseling, or assisting another to commit an
13 act of indecent exposure, as provided for in paragraph 2 of
14 subsection A of Section 1021 of Title 21 of the Oklahoma Statutes;

15 14. Preparing, publishing, selling, distributing, downloading
16 on a computer, or exhibiting obscene material or child ~~pornography~~
17 sexual abuse material, as provided for in paragraph 3 of subsection
18 A of Section 1021 of Title 21 of the Oklahoma Statutes;

19 15. Preparing, selling, giving, loaning, distributing, or
20 exhibiting any type of obscene material or child ~~pornography~~ sexual
21 abuse material, as provided for in paragraph 4 of subsection A of
22 Section 1021 of Title 21 of the Oklahoma Statutes;

23 16. Operating, owning, or maintaining a house of prostitution,
24 soliciting, enticing, or procuring another for prostitution, or

1 transporting or assisting in the transport of another for
2 prostitution purposes, as provided for in Section 1028 of Title 21
3 of the Oklahoma Statutes;

4 17. Engaging in prostitution or soliciting, inducing, enticing,
5 or procuring another to commit an act of prostitution, as provided
6 for in subsection A of Section 1029 of Title 21 of the Oklahoma
7 Statutes;

8 18. Purchasing, selling, or distributing obscene material or
9 child ~~pornography~~ sexual abuse material, as provided for in Section
10 1040.13 of Title 21 of the Oklahoma Statutes;

11 19. Encouraging, offering, or soliciting sexual conduct with a
12 minor by use of technology, as provided for in Section 1040.13a of
13 Title 21 of the Oklahoma Statutes;

14 20. Promoting a pyramid promotional scheme, as provided for in
15 Section 1073 of Title 21 of the Oklahoma Statutes;

16 21. Second or subsequent offense of permitting prostitution in
17 any house, building, room, or premises under the control of such
18 person, as provided for in Section 1086 of Title 21 of the Oklahoma
19 Statutes;

20 22. Offering or offering to secure a child under eighteen (18)
21 years of age for the purpose of ~~prostitution~~ child sex trafficking
22 or transporting or assisting in the transport of a child under
23 eighteen (18) years of age to a house, place, building, vehicle, or
24 other conveyance for the purpose of ~~prostitution~~ child sex

1 trafficking, as provided for in subsection A of Section 1087 of
2 Title 21 of the Oklahoma Statutes;

3 23. Knowingly permitting the ~~prostitution~~ child sex trafficking
4 of a child under eighteen (18) years of age by an owner, proprietor,
5 manager, conductor, or other person in any house, place, building,
6 room, or other premises under the control of such person, as
7 provided for in paragraph 2 of subsection B of Section 1087 of Title
8 21 of the Oklahoma Statutes;

9 24. Taking a woman against her will to compel her by force or
10 duress to marry another, as provided for in Section 1118 of Title 21
11 of the Oklahoma Statutes;

12 25. Abduction of a child under fifteen (15) years of age for
13 the purpose of marriage, concubinage, or any crime involving moral
14 turpitude, as provided for in Section 1119 of Title 21 of the
15 Oklahoma Statutes;

16 26. Sexual battery, as provided for in subsection B of Section
17 1123 of Title 21 of the Oklahoma Statutes;

18 27. Indecent acts with a human corpse, as provided for in
19 subsection C of Section 1123 of Title 21 of the Oklahoma Statutes;

20 28. Desecration of a human corpse, as provided for in Section
21 1161.1 of Title 21 of the Oklahoma Statutes;

22 29. Stalking within ten (10) years of a prior conviction for
23 stalking, as provided for in subsection D of Section 1173 of Title
24 21 of the Oklahoma Statutes;

1 30. Interfering with, molesting, or assaulting firefighters in
2 the performance of their duties, as provided for in Section 1217 of
3 Title 21 of the Oklahoma Statutes;

4 31. Concealment of hazardous waste, as provided for in Section
5 1230.7 of Title 21 of the Oklahoma Statutes;

6 32. Criminal syndicalism, as provided for in Section 1261 of
7 Title 21 of the Oklahoma Statutes;

8 33. Sabotage, as provided for in Section 1262 of Title 21 of
9 the Oklahoma Statutes;

10 34. Advocating or teaching criminal syndicalism or sabotage, as
11 provided for in Section 1263 of Title 21 of the Oklahoma Statutes;

12 35. Destroying, interfering, hindering, or tampering with real
13 or personal property with intent to hinder, delay, or interfere with
14 preparations for defense or for war, as provided for in Section
15 1265.2 of Title 21 of the Oklahoma Statutes;

16 36. Make or cause defects with any article or thing with
17 reasonable grounds to believe such article or thing will be used for
18 defense or for war, as provided for in Section 1265.3 of Title 21 of
19 the Oklahoma Statutes;

20 37. Conspiracy to commit crimes provided in the Sabotage
21 Prevention Act, as provided for in Section 1265.5 of Title 21 of the
22 Oklahoma Statutes;

23 38. Terrorism hoax, as provided for in Section 1268.4 of Title
24 21 of the Oklahoma Statutes;

1 39. Engaging in terrorist activity by manufacturing, sending,
2 delivering, or possessing any toxic, noxious, or lethal substances,
3 chemical, biological, or nuclear materials, as provided for in
4 Section 1268.6 of Title 21 of the Oklahoma Statutes;

5 40. Conducting or attempting to conduct financial transactions
6 involving property related to terrorism, as provided for in Section
7 1268.7 of Title 21 of the Oklahoma Statutes;

8 41. Using a money services business or an electronic funds
9 transfer in violation of the Oklahoma Antiterrorism Act, as provided
10 for in Section 1268.8 of Title 21 of the Oklahoma Statutes;

11 42. Possession of a firearm by a convicted felon, as provided
12 for in subsection A of Section 1283 of Title 21 of the Oklahoma
13 Statutes;

14 43. Possession of a firearm by a person serving a term of
15 probation for a felony or who is subject to supervision, probation,
16 parole, or inmate status, as provided for in subsection C of Section
17 1283 of Title 21 of the Oklahoma Statutes;

18 44. Possession of a firearm by a person previously adjudicated
19 as a delinquent child or youthful offender, as provided for in
20 subsection D of Section 1283 of Title 21 of the Oklahoma Statutes;

21 45. Possession of a firearm by a person who is an alien
22 illegally or unlawfully in the United States, as provided for in
23 subsection E of Section 1283 of Title 21 of the Oklahoma Statutes;

1 46. Allowing a convicted felon, adjudicated delinquent, or
2 youthful offender to possess a pistol authorized for use under the
3 Oklahoma Self-Defense Act by a person who has a handgun license, as
4 provided for in subsection F of Section 1283 of Title 21 of the
5 Oklahoma Statutes;

6 47. Use of a firearm or other offensive weapon while committing
7 a felony, as provided for in Section 1287 of Title 21 of the
8 Oklahoma Statutes;

9 48. Pointing a firearm, as provided for in Section 1289.16 of
10 Title 21 of the Oklahoma Statutes;

11 49. Manufacturing, importing, or selling restricted bullets, as
12 provided for in Section 1289.20 of Title 21 of the Oklahoma
13 Statutes;

14 50. Possessing, carrying, or using or attempting to use against
15 another person any restricted bullets, as provided for in Section
16 1289.21 of Title 21 of the Oklahoma Statutes;

17 51. Committing a felony while wearing body armor, as provided
18 for in Section 1289.26 of Title 21 of the Oklahoma Statutes;

19 52. Carrying a stolen handgun, as provided for in subsection B
20 of Section 1290.21 of Title 21 of the Oklahoma Statutes;

21 53. Incitement to riot, as provided for in Section 1320.2 of
22 Title 21 of the Oklahoma Statutes;

23 54. Malicious destruction or damage to real or personal
24 property or malicious injury to another during a state of emergency,

1 as provided for in Section 1321.7 of Title 21 of the Oklahoma
2 Statutes;

3 55. Participating in a riot during a state of emergency, as
4 provided for in subsection A of Section 1321.8 of Title 21 of the
5 Oklahoma Statutes;

6 56. Causing an innocent or irresponsible person to engage in a
7 riot, as provided for in subsection E of Section 1321.8 of Title 21
8 of the Oklahoma Statutes;

9 57. Possession of explosives by a convicted felon, as provided
10 for in Section 1368 of Title 21 of the Oklahoma Statutes;

11 58. Attempting, conspiring, or endeavoring to perform an act of
12 violence, as provided for in subsection A of Section 1378 of Title
13 21 of the Oklahoma Statutes;

14 59. Devising a plan, scheme, or program of action to cause
15 serious bodily harm or death of another person, as provided for in
16 subsection C of Section 1378 of Title 21 of the Oklahoma Statutes;

17 60. Endangering any human life including emergency service
18 personnel while committing an act of arson, as provided for in
19 Section 1405 of Title 21 of the Oklahoma Statutes;

20 61. Intimidating, threatening, assaulting, or battering any
21 driver, attendant, guard, or passenger of a bus with intent to seize
22 the bus, as provided for in subsection B of Section 1903 of Title 21
23 of the Oklahoma Statutes;

24

1 62. Discharging any firearm into or within any bus, terminal,
2 or other transportation facility, as provided for in subsection D of
3 Section 1903 of Title 21 of the Oklahoma Statutes;

4 63. Leaving the scene of a vehicle accident that resulted in
5 the death of a person, as provided for in Section 10-102.1 of Title
6 47 of the Oklahoma Statutes;

7 64. Second felony conviction of driving under the influence of
8 alcohol or other intoxicating substance, as provided for in
9 paragraph 3 of subsection C of Section 11-902 of Title 47 of the
10 Oklahoma Statutes;

11 65. Causing an accident resulting in the death of another
12 person while operating a vehicle without a valid driver license, as
13 provided for in subsection C of Section 11-905 of Title 47 of the
14 Oklahoma Statutes;

15 66. Throwing or dropping any substance at a moving vehicle, as
16 provided for in subsection A of Section 11-1111 of Title 47 of the
17 Oklahoma Statutes;

18 67. Throwing or dropping any object from a bridge or overpass
19 with intent to damage property or injure a person, as provided for
20 in subsection B of Section 11-1111 of Title 47 of the Oklahoma
21 Statutes;

22 68. Manufacturing, selling, transferring, or furnishing a
23 precursor substance to another with knowledge the recipient will use
24 such substance to unlawfully manufacture a controlled substance, as

1 provided for in subsection C of Section 2-328 of Title 63 of the
2 Oklahoma Statutes;

3 69. Second or subsequent conviction for manufacturing, selling,
4 transferring, furnishing, or receiving a precursor substance, as
5 provided for in subsection D of Section 2-328 of Title 63 of the
6 Oklahoma Statutes;

7 70. Purchasing, obtaining, possessing, manufacturing, selling,
8 or transferring a precursor substance without a permit or making a
9 false statement in an application or report, as provided for in
10 subsection E of Section 2-328 of Title 63 of the Oklahoma Statutes;

11 71. Selling, transferring, distributing, or dispensing any
12 product containing ephedrine, pseudoephedrine, or
13 phenylpropanolamine to another with knowledge the purchaser will use
14 such product as a precursor to manufacture methamphetamine or
15 another controlled illegal substance, as provided for in Section 2-
16 333 of Title 63 of the Oklahoma Statutes;

17 72. Cultivating, producing, or knowingly permitting the
18 cultivation or production of any species of plants from which
19 controlled dangerous substances may be derived, as provided for in
20 subsection B of Section 2-509 of Title 63 of the Oklahoma Statutes;

21 73. Manufacturing or attempting to manufacture any controlled
22 dangerous substance by cooking, burning, or extracting and
23 converting marijuana or marijuana oil into hashish, hashish oil, or
24

1 hashish powder, as provided for in subsection H of Section 2-509 of
2 Title 63 of the Oklahoma Statutes;

3 74. Purchasing or possessing any quantity of pseudoephedrine by
4 a person who is subject to the Oklahoma Methamphetamine Offender
5 Registry Act, as provided for in subsection B of Section 2-701 of
6 Title 63 of the Oklahoma Statutes; and

7 75. Using an explosive or blasting agent with the intent to
8 kill, injure, or intimidate a person or unlawfully damage real or
9 personal property, as provided for in subsection B of Section 124.8
10 of Title 63 of the Oklahoma Statutes.

11 B. Any person convicted of a Class B4 criminal offense set
12 forth in this section shall be punished in accordance with the
13 corresponding penalties provided for in the Oklahoma Statutes.

14 SECTION 9. AMENDATORY Section 14, Chapter 366, O.S.L.
15 2024 (21 O.S. Supp. 2024, Section 20N), is amended to read as
16 follows:

17 Section 20N. A. Upon the effective date of this act, Class D1
18 shall include the following criminal offenses:

19 1. Public warehouse and/or commodity stock fraud, as provided
20 for in Section 9-34 of Title 2 of the Oklahoma Statutes;

21 2. False issuance of warehouse receipt, as provided for in
22 Section 9-35 of Title 2 of the Oklahoma Statutes;

23 3. Misrepresentation of charter, as provided for in Section 9-
24 36 of Title 2 of the Oklahoma Statutes;

1 4. Tampering with anhydrous equipment, as provided for in
2 subsection A of Section 11-10 of Title 2 of the Oklahoma Statutes;

3 5. Willfully burn forest, grass, crops, or woodlands, as
4 provided for in Section 16-25 of Title 2 of the Oklahoma Statutes;

5 6. Willful and unlawful burning of forest, grass, croplands,
6 rangeland, or other wild lands by owner, as provided for in Section
7 16-28.1 of Title 2 of the Oklahoma Statutes;

8 7. Possession of incendiary device with the intent to burn, as
9 provided for in Section 16-34 of Title 2 of the Oklahoma Statutes;

10 8. Operate aircraft not registered with the Federal Aviation
11 Administration Office of Aircraft Registry or foreign country, as
12 provided for in subsection A of Section 258 of Title 3 of the
13 Oklahoma Statutes;

14 9. Supply false information in regard to aircraft ownership, as
15 provided for in subsection B of Section 258 of Title 3 of the
16 Oklahoma Statutes;

17 10. Concealing identity of aircraft, as provided for in
18 subsection C of Section 258 of Title 3 of the Oklahoma Statutes;

19 11. Destruction of registration or serial number on aircraft,
20 as provided for in subsection A of Section 259 of Title 3 of the
21 Oklahoma Statutes;

22 12. Destruction of registration or serial number on aircraft
23 with intent to conceal, as provided for in subsection B of Section
24 259 of Title 3 of the Oklahoma Statutes;

1 13. Sell, purchase, or possess aircraft with removed or
2 falsified identification number with intent to misrepresent the
3 identity of aircraft, as provided for in subsection D of Section 259
4 of Title 3 of the Oklahoma Statutes;

5 14. Operating aircraft under the influence of alcohol, second
6 or subsequent offense within ten (10) years, as provided for in
7 subsection A of Section 301 of Title 3 of the Oklahoma Statutes;

8 15. Operating aircraft under the influence of intoxicant,
9 second or subsequent offense with ten (10) years, as provided for in
10 subsection A of Section 301 of Title 3 of the Oklahoma Statutes;

11 16. Unauthorized use of aircraft, as provided for in subsection
12 A of Section 321 of Title 3 of the Oklahoma Statutes;

13 17. Charge fee for horse race without a license, as provided
14 for in Section 205 of Title 3A of the Oklahoma Statutes;

15 18. Pari-mutuel wagering without a license, as provided for in
16 subsection A of Section 208.4 of Title 3A of the Oklahoma Statutes;

17 19. Entering racehorse under false name, as provided for in
18 subsection A of Section 208.6 of Title 3A of the Oklahoma Statutes;

19 20. Entering racehorse without name being registered, as
20 provided for in subsection B of Section 208.6 of Title 3A of the
21 Oklahoma Statutes;

22 21. Using racing stimulating devices, as provided for in
23 Section 208.7 of Title 3A of the Oklahoma Statutes;

1 22. Racetrack bribery or ticket falsification, as provided for
2 in Section 208.8 of Title 3A of the Oklahoma Statutes;

3 23. Unauthorized wagering on horse racing, as provided for in
4 Section 208.9 of Title 3A of the Oklahoma Statutes;

5 24. Falsification of information on racehorse, as provided for
6 in Section 208.10 of Title 3A of the Oklahoma Statutes;

7 25. Administer a drug or medication without authorization to
8 horse prior to racing, as provided for in subsection C of Section
9 208.11 of Title 3A of the Oklahoma Statutes;

10 26. Violation of horse racing drug provisions, as provided for
11 in subsection D of Section 208.11 of Title 3A of the Oklahoma
12 Statutes;

13 27. Forging and/or counterfeiting state lottery ticket, as
14 provided for in subsection A of Section 727 of Title 3A of the
15 Oklahoma Statutes;

16 28. Influence lottery win by fraud, as provided for in
17 subsection B of Section 727 of Title 3A of the Oklahoma Statutes;

18 29. Own dog that attacks and kills a person, as provided for in
19 subsection B of Section 42.4 of Title 4 of the Oklahoma Statutes;

20 30. Release dog on law enforcement officer, as provided for in
21 subsection C of Section 42.4 of Title 4 of the Oklahoma Statutes;

22 31. Pledging assets of bank as collateral, as provided in
23 Section 809 of Title 6 of the Oklahoma Statutes;

1 32. Unlawful compensation of bank officer, as provided for in
2 Section 1405 of Title 6 of the Oklahoma Statutes;

3 33. Receipt of deposits while insolvent, as provided for in
4 Section 1406 of Title 6 of the Oklahoma Statutes;

5 34. Unlawful service as bank officer or director, as provided
6 for in Section 1407 of Title 6 of the Oklahoma Statutes;

7 35. Serving as bank commissioner, administrative assistant, or
8 assistant banking commissioner with a felony conviction, as provided
9 for in Section 1408 of Title 6 of the Oklahoma Statutes;

10 36. Concealing bank transaction, as provided for in Section
11 1409 of Title 6 of the Oklahoma Statutes;

12 37. Improper maintenance of accounts or false or deceptive
13 entries and statements, as provided for in Section 1410 of Title 6
14 of the Oklahoma Statutes;

15 38. Payment of penalties and judgments against others, as
16 provided for in Section 1411 of Title 6 of the Oklahoma Statutes;

17 39. Embezzlement of bank funds, as provided for in Section 1412
18 of Title 6 of the Oklahoma Statutes;

19 40. Circulation of statement or representation for the purpose
20 of injuring any bank institution, as provided for in Section 1413 of
21 Title 6 of the Oklahoma Statutes;

22 41. Authorizing, executing, or ratifying a criminal offense, as
23 provided for in subsection A of Section 1414 of Title 6 of the
24 Oklahoma Statutes;

1 42. Violation of any lawful order of the Board or Commissioner,
2 as provided for in subsection C of Section 1414 of Title 6 of the
3 Oklahoma Statutes;

4 43. Bank advertising with confusingly similar name, as provided
5 for in subsection A of Section 1417 of Title 6 of the Oklahoma
6 Statutes;

7 44. Using shortened confusingly similar name for advertising,
8 as provided for in subsection B of Section 1417 of Title 6 of the
9 Oklahoma Statutes;

10 45. Acquiring another bank but using former name, as provided
11 for in subsection C of Section 1417 of Title 6 of the Oklahoma
12 Statutes;

13 46. Non-banking business using confusingly similar name, as
14 provided for in subsection D of Section 1417 of Title 6 of the
15 Oklahoma Statutes;

16 47. Registered sex offender providing services in a child care
17 facility, as provided for in subsection F of Section 404.1 of Title
18 10 of the Oklahoma Statutes;

19 48. Failure to report child abuse, as provided for in
20 subsection C of Section 1-2-101 of Title 10A of the Oklahoma
21 Statutes;

22 49. Interception of wire, oral, or electronic communication, as
23 provided for in paragraph 1 of Section 176.3 of Title 13 of the
24 Oklahoma Statutes;

1 50. Using devices to intercept oral communication, as provided
2 for in paragraph 2 of Section 176.3 of Title 13 of the Oklahoma
3 Statutes;

4 51. Disclosing contents of wire, oral, or electronic
5 communication, as provided for in paragraph 3 of Section 176.3 of
6 Title 13 of the Oklahoma Statutes;

7 52. Using contents of wire, oral, or electronic communication,
8 as provided for in paragraph 4 of Section 176.3 of Title 13 of the
9 Oklahoma Statutes;

10 53. Removing, injuring, or obstructing telephone line, as
11 provided for in paragraph 5 of Section 176.3 of Title 13 of the
12 Oklahoma Statutes;

13 54. Carrying devices for interception of wire, oral, or
14 electronic communication, as provided for in paragraph 6 of Section
15 176.3 of Title 13 of the Oklahoma Statutes;

16 55. Making devices for interception of wire, oral, or
17 electronic communication, as provided for in paragraph 7 of Section
18 176.3 of Title 13 of the Oklahoma Statutes;

19 56. Using communication facility in committing felonies, as
20 provided for in paragraph 8 of Section 176.3 of Title 13 of the
21 Oklahoma Statutes;

22 57. Violation of the Oklahoma Consumer Protection Act, as
23 provided for in Section 753 of Title 15 of the Oklahoma Statutes;
24

1 58. Violation of the Home Repair Fraud Act, as provided for in
2 Section 765.3 of Title 15 of the Oklahoma Statutes;

3 59. Conduct closing-out sale without license, as provided for
4 in Section 767 of Title 15 of the Oklahoma Statutes;

5 60. Violation of the Unlawful Electronic Mail Act, as provided
6 for in Section 776.1 of Title 15 of the Oklahoma Statutes;

7 61. Violation of the Unlawful Electronic Mail Act for
8 commercial electronic mail, as provided for in Section 776.6 of
9 Title 15 of the Oklahoma Statutes;

10 62. Conceal or destroy corporation records, as provided for in
11 Section 16 of Title 17 of the Oklahoma Statutes;

12 63. Misapplication of funds, as provided for in Section 411 of
13 Title 18 of the Oklahoma Statutes;

14 64. Solicit funds to secure old age assistance by deception or
15 fraud, as provided for in Section 553.1 of Title 18 of the Oklahoma
16 Statutes;

17 65. Inspector, judge, or clerk refusing to extend or enforce
18 the right to sign and deliver the certificate of election votes, as
19 provided for in Section 90 of Title 19 of the Oklahoma Statutes;

20 66. Knowing and willful failure or refusal to perform duties,
21 as provided for in Section 91 of Title 19 of the Oklahoma Statutes;

22 67. County officer failing to make daily deposit, as provided
23 for in Section 682 of Title 19 of the Oklahoma Statutes;

24

1 68. Use of false or illegal voucher by county official, as
2 provided for in Section 686 of Title 19 of the Oklahoma Statutes;

3 69. Gift to influence legislator, as provided for in Section
4 318 of Title 21 of the Oklahoma Statutes;

5 70. Legislator receiving payoff for employment of other, as
6 provided for in Section 321 of Title 21 of the Oklahoma Statutes;

7 71. Lobbying legislature on contingency fee basis, as provided
8 for in Section 334 of Title 21 of the Oklahoma Statutes;

9 72. Furnishing public supplies for profit, as provided for in
10 subsection A of Section 355 of Title 21 of the Oklahoma Statutes;

11 73. Purchase public supplies from business that employs family
12 member or spouse with more than five percent (5%) interest, as
13 provided for in subsection C of Section 355 of Title 21 of the
14 Oklahoma Statutes;

15 74. Make false claim against the state, as provided for in
16 subsection A of Section 358 of Title 21 of the Oklahoma Statutes;

17 75. Bribing an officer, as provided for in Section 381 of Title
18 21 of the Oklahoma Statutes;

19 76. Bribing participant or official in athletic contest, as
20 provided for in Section 399 of Title 21 of the Oklahoma Statutes;

21 77. Engaging in pattern of criminal offenses, as provided for
22 in Section 425 of Title 21 of the Oklahoma Statutes;

23 78. Escape from county or city jail, as provided for in
24 subsection A of Section 443 of Title 21 of the Oklahoma Statutes;

1 79. Escape from the Department of Corrections or alternative
2 incarceration, as provided for in subsection B of Section 443 of
3 Title 21 of the Oklahoma Statutes;

4 80. Escape from juvenile detention facility, as provided for in
5 subsection E of Section 443 of Title 21 of the Oklahoma Statutes;

6 81. Unauthorized entry into penal institution or jail, as
7 provided for in Section 445 of Title 21 of the Oklahoma Statutes;

8 82. Preparing false evidence, as provided for in Section 453 of
9 Title 21 of the Oklahoma Statutes;

10 83. Bribing witness to falsely testify, as provided for in
11 Section 456 of Title 21 of the Oklahoma Statutes;

12 84. Larceny or destruction of records by clerk or officer, as
13 provided for in Section 461 of Title 21 of the Oklahoma Statutes;

14 85. Larceny or destruction of records by person other than
15 officers, as provided for in Section 462 of Title 21 of the Oklahoma
16 Statutes;

17 86. Offer forged or false instruments for the record, as
18 provided for in Section 463 of Title 21 of the Oklahoma Statutes;

19 87. Perjury, as provided for in Section 491 of Title 21 of the
20 Oklahoma Statutes;

21 88. Contradictory statements as perjury, as provided for in
22 Section 496 of Title 21 of the Oklahoma Statutes;

23 89. Perjury by subornation, as provided for in Section 504 of
24 Title 21 of the Oklahoma Statutes;

1 90. Falsify public record, as provided for in Section 531 of
2 Title 21 of the Oklahoma Statutes;

3 91. Fortifying access point to place where felony is being
4 committed, as provided for in Section 540C of Title 21 of the
5 Oklahoma Statutes;

6 92. Compounding a crime, as provided for in Section 543 of
7 Title 21 of the Oklahoma Statutes;

8 93. Substitute a child to deceive a parent or guardian, as
9 provided for in Section 579 of Title 21 of the Oklahoma Statutes;

10 94. Record, listen to, or observe jury proceedings, as provided
11 for in Section 588 of Title 21 of the Oklahoma Statutes;

12 95. Abuse, sexual abuse, or exploitation of a vulnerable adult,
13 as provided for in subsection A of Section 843.3 of Title 21 of the
14 Oklahoma Statutes;

15 96. Neglect of a vulnerable adult, as provided for in
16 subsection B of Section 843.3 of Title 21 of the Oklahoma Statutes;

17 97. Procuring an abortion, as provided for in Section 861 of
18 Title 21 of the Oklahoma Statutes;

19 98. Adultery, as provided for in Section 871 of Title 21 of the
20 Oklahoma Statutes;

21 99. Bigamy, as provided for in Section 881 of Title 21 of the
22 Oklahoma Statutes;

23 100. Knowingly marrying a bigamist, as provided for in Section
24 884 of Title 21 of the Oklahoma Statutes;

1 101. Confidence game by cards, as provided for in Section 954
2 of Title 21 of the Oklahoma Statutes;

3 102. Dealing in gambling devices, as provided for in Section
4 984 of Title 21 of the Oklahoma Statutes;

5 103. Install communication of gambling information, as provided
6 for in Section 986 of Title 21 of the Oklahoma Statutes;

7 104. Dissemination of gambling information, as provided for in
8 Section 987 of Title 21 of the Oklahoma Statutes;

9 105. Conspiracy to violate gambling laws, as provided for in
10 Section 988 of Title 21 of the Oklahoma Statutes;

11 106. Engaging in prostitution while HIV-infected, as provided
12 for in subsection B of Section 1031 of Title 21 of the Oklahoma
13 Statutes;

14 107. Engage in or operate prostitution within one thousand
15 (1,000) feet of a school or church, as provided for in subsection D
16 of Section 1031 of Title 21 of the Oklahoma Statutes;

17 108. Interactive computer service provider failing to remove
18 child ~~pornography~~ sexual abuse material, third or subsequent
19 offense, as provided for in Section 1040.80 of Title 21 of the
20 Oklahoma Statutes;

21 109. Gain or attempt to gain value from nonconsensual
22 dissemination of private sexual images, as provided for in
23 subsection G of Section 1040.13b of Title 21 of the Oklahoma
24 Statutes;

1 110. Sex offender entering safety zone around school, as
2 provided for in Section 1125 of Title 21 of the Oklahoma Statutes;

3 111. Unlawful removal of dead body, as provided for in Section
4 1161 of Title 21 of the Oklahoma Statutes;

5 112. Purchasing or receiving dead body, as provided for in
6 Section 1162 of Title 21 of the Oklahoma Statutes;

7 113. Using photographic, electronic, or video equipment in
8 clandestine manner, as provided for in subsection B of Section 1171
9 of Title 21 of the Oklahoma Statutes;

10 114. Obscene, threatening, or harassing phone call, second or
11 subsequent offense, as provided for in Section 1172 of Title 21 of
12 the Oklahoma Statutes;

13 115. Spreading infectious diseases, as provided for in Section
14 1192 of Title 21 of the Oklahoma Statutes;

15 116. Altering livestock appearance for exhibition, second or
16 subsequent offense, as provided for in Section 1229 of Title 21 of
17 the Oklahoma Statutes;

18 117. Unlawfully transport hazardous waste, as provided for in
19 Section 1230.3 of Title 21 of the Oklahoma Statutes;

20 118. Unlawful waste management, as provided for in Section
21 1230.4 of Title 21 of the Oklahoma Statutes;

22 119. False statements and acts concerning permits and waste, as
23 provided for in Section 1230.5 of Title 21 of the Oklahoma Statutes;

1 120. Unlawful disposal of hazardous waste, as provided for in
2 Section 1230.6 of Title 21 of the Oklahoma Statutes;

3 121. Attempts to violate the Sabotage Prevention Act, as
4 provided for in Section 1265.4 of Title 21 of the Oklahoma Statutes;

5 122. Carry weapon with intent to injure another, as provided
6 for in Section 1278 of Title 21 of the Oklahoma Statutes;

7 123. Teaching, demonstrating, or training use of firearms in
8 furtherance of riot, as provided for in Section 1320.10 of Title 21
9 of the Oklahoma Statutes;

10 124. Delivering fraudulent bill of lading, as provided for in
11 Section 1411 of Title 21 of the Oklahoma Statutes;

12 125. Maintaining fraudulent warehouse receipts, as provided for
13 in Section 1412 of Title 21 of the Oklahoma Statutes;

14 126. Issuing duplicate bills of lading or warehouse receipts,
15 as provided for in Section 1414 of Title 21 of the Oklahoma
16 Statutes;

17 127. Selling goods without consent of holder of bill of lading,
18 as provided for in Section 1415 of Title 21 of the Oklahoma
19 Statutes;

20 128. Unlawful delivery of goods, value from Two Thousand Five
21 Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
22 (\$15,000.00), as provided for in paragraph 3 of Section 1416 of
23 Title 21 of the Oklahoma Statutes;

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1 129. Burglary in the third degree, as provided for in
2 subsection B of Section 1435 of Title 21 of the Oklahoma Statutes;

3 130. Embezzlement of property, value from Two Thousand Five
4 Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
5 (\$15,000.00), as provided for in subsection A of Section 1451 of
6 Title 21 of the Oklahoma Statutes;

7 131. Extortion, as provided for in Section 1481 of Title 21 of
8 the Oklahoma Statutes;

9 132. Extortion induced by threats, as provided for in Section
10 1482 of Title 21 of the Oklahoma Statutes;

11 133. Obtain signatures by extortion, as provided for in Section
12 1485 of Title 21 of the Oklahoma Statutes;

13 134. Extortion by threatening letter, as provided for in
14 Section 1486 of Title 21 of the Oklahoma Statutes;

15 135. Blackmail, as provided for in Section 1488 of Title 21 of
16 the Oklahoma Statutes;

17 136. Defrauding hotel, inn, or restaurant, value of One
18 Thousand Dollars (\$1,000.00) or more, as provided for in Section
19 1503 of Title 21 of the Oklahoma Statutes;

20 137. Renting motor vehicle with bogus check, value of One
21 Thousand Dollars (\$1,000.00) or more, as provided for in Section
22 1521 of Title 21 of the Oklahoma Statutes;

23 138. Receive money or property by impersonating another, value
24 from Two Thousand Five Hundred Dollars (\$2,500.00) to Fifteen

1 Thousand Dollars (\$15,000.00), as provided for in paragraph 3 of
2 Section 1532 of Title 21 of the Oklahoma Statutes;

3 139. False use of "State Police" with intent to communicate
4 policing authority, and another is injured, defrauded, harassed, or
5 vexed, as provided for in subsection G of Section 1533 of Title 21
6 of the Oklahoma Statutes;

7 140. Identity theft, as provided for in Section 1533.1 of Title
8 21 of the Oklahoma Statutes;

9 141. Felony value - false pretense, bogus check, con game,
10 valued from Two Thousand Five Hundred Dollars (\$2,500.00) to Fifteen
11 Thousand Dollars (\$15,000.00), as provided for in subsection A of
12 Section 1541.2 of Title 21 of the Oklahoma Statutes;

13 142. Two or more false or bogus checks, valued from Two
14 Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
15 Dollars (\$15,000.00), as provided for in subsection A of Section
16 1541.3 of Title 21 of the Oklahoma Statutes;

17 143. Obtaining money or property with false negotiable paper,
18 as provided for in Section 1544 of Title 21 of the Oklahoma
19 Statutes;

20 144. Signs credit or debit card with intent to defraud, as
21 provided for in subsection (a) of Section 1550.28 of Title 21 of the
22 Oklahoma Statutes;

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1 145. Possess credit or debit card of another with intent to
2 defraud, as provided for in subsection (b) of Section 1550.28 of
3 Title 21 of the Oklahoma Statutes;

4 146. Possessing incomplete credit cards with intent to
5 complete, as provided for in Section 1550.31 of Title 21 of the
6 Oklahoma Statutes;

7 147. Possess firearm with altered ID during commission of a
8 felony, as provided for in subsection A of Section 1550 of Title 21
9 of the Oklahoma Statutes;

10 148. Make, sell, or display false identification for felony
11 purposes or to mislead police officer, as provided for in subsection
12 C of Section 1550.41 of Title 21 of the Oklahoma Statutes;

13 149. Forgery of state, public, court, or corporate seals, as
14 provided for in Section 1571 of Title 21 of the Oklahoma Statutes;

15 150. Forgery of records, as provided for in Section 1572 of
16 Title 21 of the Oklahoma Statutes;

17 151. Making false entry in records, as provided for in Section
18 1573 of Title 21 of the Oklahoma Statutes;

19 152. Forgery of certification or acknowledgement of conveyance,
20 as provided for in Section 1574 of Title 21 of the Oklahoma
21 Statutes;

22 153. Forgery II / Forgery III, valued from Two Thousand Five
23 Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
24

1 (\$15,000.00), as provided for in subsection A of Section 1577 of
2 Title 21 of the Oklahoma Statutes;

3 154. Possession of forged evidence of debt, valued from Two
4 Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
5 Dollars (\$15,000.00), as provided for in subsection A of Section
6 1578 of Title 21 of the Oklahoma Statutes;

7 155. Possession of other forged instrument, valued from Two
8 Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
9 Dollars (\$15,000.00), as provided for in subsection A of Section
10 1579 of Title 21 of the Oklahoma Statutes;

11 156. Issuing spurious or false certificates of stock, as
12 provided for in Section 1580 of Title 21 of the Oklahoma Statutes;

13 157. Reissuing canceled certificates of stock, as provided for
14 in Section 1581 of Title 21 of the Oklahoma Statutes;

15 158. Issuing or pledging false evidence of debt, as provided
16 for in Section 1582 of Title 21 of the Oklahoma Statutes;

17 159. Counterfeiting coin, as provided for in Section 1583 of
18 Title 21 of the Oklahoma Statutes;

19 160. Counterfeiting coin for exportation, as provided for in
20 Section 1584 of Title 21 of the Oklahoma Statutes;

21 161. Forging process of court or title to property, as provided
22 for in Section 1585 of Title 21 of the Oklahoma Statutes;

23 162. Making false entries in public book, as provided for in
24 Section 1586 of Title 21 of the Oklahoma Statutes;

1 163. Forging tickets of passage, as provided for in Section
2 1587 of Title 21 of the Oklahoma Statutes;

3 164. Forging postage stamps, as provided for in Section 1588 of
4 Title 21 of the Oklahoma Statutes;

5 165. Falsification of corporate records, as provided for in
6 Section 1589 of Title 21 of the Oklahoma Statutes;

7 166. Employee making false entries, as provided for in Section
8 1590 of Title 21 of the Oklahoma Statutes;

9 167. Possessing counterfeit coin with intent to circulate, as
10 provided for in Section 1591 of Title 21 of the Oklahoma Statutes;

11 168. Uttering forged instruments, value from Two Thousand Five
12 Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
13 (\$15,000.00), as provided for in subsection A of Section 1592 of
14 Title 21 of the Oklahoma Statutes;

15 169. Falsely procuring another's signature, as provided for in
16 Section 1593 of Title 21 of the Oklahoma Statutes;

17 170. Utter signature of another with same name, as provided for
18 in Section 1622 of Title 21 of the Oklahoma Statutes;

19 171. Uttering one's endorsement as another's, as provided for
20 in Section 1623 of Title 21 of the Oklahoma Statutes;

21 172. Erasure or alterations with intent to defraud, as provided
22 for in Section 1624 of Title 21 of the Oklahoma Statutes;

23 173. Sign fictitious name as officer of corporation, as
24 provided for in Section 1626 of Title 21 of the Oklahoma Statutes;

1 174. Fraudulent insolvency of corporation, as provided for in
2 Section 1639 of Title 21 of the Oklahoma Statutes;

3 175. Workers' compensation fraud, as provided for in Section
4 1663 of Title 21 of the Oklahoma Statutes;

5 176. Willfully poisoning animal, as provided for in Section
6 1681 of Title 21 of the Oklahoma Statutes;

7 177. Larceny of lost property, value from Two Thousand Five
8 Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
9 (\$15,000.00), as provided for in paragraph 3 of Section 1702 of
10 Title 21 of the Oklahoma Statutes;

11 178. Grand larceny, value from Two Thousand Five Hundred
12 Dollars (\$2,500.00) to Fifteen Thousand Dollars (\$15,000.00), as
13 provided for in subsection A of Section 1705 of Title 21 of the
14 Oklahoma Statutes;

15 179. Larceny of written instrument, as provided for in Section
16 1709 of Title 21 of the Oklahoma Statutes;

17 180. Receive, possess, or conceal stolen property, value from
18 Two Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
19 Dollars (\$15,000.00), as provided for in subsection A of Section
20 1713 of Title 21 of the Oklahoma Statutes;

21 181. Bringing stolen property into state, value from Two
22 Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
23 Dollars (\$15,000.00), as provided for in Section 1715 of Title 21 of
24 the Oklahoma Statutes;

1 182. Larceny of dogs, as provided for in Section 1718 of Title
2 21 of the Oklahoma Statutes;

3 183. Larceny of or receiving stolen fowls, as provided for in
4 Section 1719 of Title 21 of the Oklahoma Statutes;

5 184. Larceny of domesticated fish or game, value One Thousand
6 Dollars (\$1,000.00) or more, as provided for in Section 1719.1 of
7 Title 21 of the Oklahoma Statutes;

8 185. Larceny of auto, aircraft, or other motor vehicle, value
9 less than Fifty Thousand Dollars (\$50,000.00), as provided for in
10 Section 1720 of Title 21 of the Oklahoma Statutes;

11 186. Larceny from building or house, as provided for in Section
12 1723 of Title 21 of the Oklahoma Statutes;

13 187. Possession of mercury, as provided for in Section 1726 of
14 Title 21 of the Oklahoma Statutes;

15 188. Entering with intent to steal copper, as provided for in
16 Section 1727 of Title 21 of the Oklahoma Statutes;

17 189. Possessing, receiving, or transporting stolen copper, as
18 provided for in Section 1728 of Title 21 of the Oklahoma Statutes;

19 190. Larceny of merchandise from retailer, value from Two
20 Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
21 Dollars (\$15,000.00), as provided for in subsection A of Section
22 1731 of Title 21 of the Oklahoma Statutes;

23 191. Larceny of trade secrets, value from Two Thousand Five
24 Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars

1 (\$15,000.00), as provided for in Section 1732 of Title 21 of the
2 Oklahoma Statutes;

3 192. Procuring, selling, or receiving telephone records by
4 fraud (single telephone record), as provided for in subsection A of
5 Section 1742.2 of Title 21 of the Oklahoma Statutes;

6 193. Injury to or obstruction of railroad, as provided for in
7 Section 1751 of Title 21 of the Oklahoma Statutes;

8 194. Interfering with railroad, as provided for in Section
9 1752.1 of Title 21 of the Oklahoma Statutes;

10 195. Possess, use, manufacture, or threaten to use incendiary
11 device or explosives without injury, as provided for in Section
12 1767.1 of Title 21 of the Oklahoma Statutes;

13 196. Removing or injuring piles securing bank or dam, as
14 provided for in Section 1777 of Title 21 of the Oklahoma Statutes;

15 197. Maliciously injuring written instrument, value from Two
16 Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
17 Dollars (\$15,000.00), as provided for in Section 1779 of Title 21 of
18 the Oklahoma Statutes;

19 198. Place hard object or inflammable object in grain or
20 cotton, as provided for in Section 1837 of Title 21 of the Oklahoma
21 Statutes;

22 199. Selling five or more unlawful telecommunication devices
23 within six (6) months, as provided for in subsection B of Section
24 1873 of Title 21 of the Oklahoma Statutes;

1 200. Manufacturing five or more unlawful telecommunications
2 devices within six (6) months, as provided for in subsection B of
3 Section 1874 of Title 21 of the Oklahoma Statutes;

4 201. Unauthorized removal of baggage or cargo from bus or
5 terminal, as provided for in Section 1904 of Title 21 of the
6 Oklahoma Statutes;

7 202. Access computer system or network with unlawful intent, as
8 provided for in Section 1958 of Title 21 of the Oklahoma Statutes;

9 203. Reproduction of sound recording without consent, one
10 hundred (100) or more articles, as provided for in Section 1976 of
11 Title 21 of the Oklahoma Statutes;

12 204. Unlawfully sell sound recordings, as provided for in
13 Section 1977 of Title 21 of the Oklahoma Statutes;

14 205. Broadcast or live recording for sale without consent, as
15 provided for in Section 1978 of Title 21 of the Oklahoma Statutes;

16 206. Rent or sell articles without true name of manufacturer,
17 as provided for in Section 1979 of Title 21 of the Oklahoma
18 Statutes;

19 207. Counterfeiting recording or article label, as provided for
20 in Section 1980 of Title 21 of the Oklahoma Statutes;

21 208. Violation of Trademark Anti-Counterfeiting Act, as
22 provided for in Section 1990.2 of Title 21 of the Oklahoma Statutes;

23 209. Tampering with security equipment, as provided for in
24 Section 1993 of Title 21 of the Oklahoma Statutes;

1 210. Sex offender engaging in ice cream truck vending, as
2 provided for in Section 2100.1 of Title 21 of the Oklahoma Statutes;

3 211. Protective order violation, second or subsequent offense,
4 as provided for in subsection A of Section 60.6 of Title 22 of the
5 Oklahoma Statutes;

6 212. Protective order violation resulting in physical injury,
7 as provided for in subsection B of Section 60.6 of Title 22 of the
8 Oklahoma Statutes;

9 213. Disposal of seized liquor by officer, as provided for in
10 Section 1263 of Title 22 of the Oklahoma Statutes;

11 214. False affidavits, as provided for in Section 1264 of Title
12 22 of the Oklahoma Statutes;

13 215. Interfering with voting machine, as provided for in
14 Section 9-118 of Title 26 of the Oklahoma Statutes;

15 216. Voting illegally, as provided for in Section 16-102 of
16 Title 26 of the Oklahoma Statutes;

17 217. Removing ballot from or carrying ballot into polling
18 place, as provided for in Section 16-102.1 of Title 26 of the
19 Oklahoma Statutes;

20 218. False application for an absentee ballot, as provided for
21 in Section 16-102.2 of Title 26 of the Oklahoma Statutes;

22 219. False affidavit in voting registration, as provided for in
23 Section 16-103 of Title 26 of the Oklahoma Statutes;

1 220. Causing unqualified persons to be invalidly registered, as
2 provided for in Section 16-103.1 of Title 26 of the Oklahoma
3 Statutes;

4 221. False notarization of absentee ballot, as provided for in
5 Section 16-104 of Title 26 of the Oklahoma Statutes;

6 222. Perpetrate fraud or theft to affect election, as provided
7 for in Section 16-105 of Title 26 of the Oklahoma Statutes;

8 223. Bribes to influence votes, as provided for in Section 16-
9 106 of Title 26 of the Oklahoma Statutes;

10 224. Offer bribe to withdraw as candidate, as provided for in
11 Section 16-107 of Title 26 of the Oklahoma Statutes;

12 225. Solicit or accept bribe for withdrawal of candidacy, as
13 provided for in Section 16-108 of Title 26 of the Oklahoma Statutes;

14 226. Prevent person from registering to vote or voting, as
15 provided for in Section 16-109 of Title 26 of the Oklahoma Statutes;

16 227. Printing or possession of ballots illegally, as provided
17 for in Section 16-120 of Title 26 of the Oklahoma Statutes;

18 228. Violation of the Oklahoma Pollutant Discharge Elimination
19 System Act, as provided for in subsection G of Section 2-6-206 of
20 Title 27A of the Oklahoma Statutes;

21 229. Falsely state information to the Department of
22 Environmental Quality, as provided for in Section 2-7-109 of Title
23 27A of the Oklahoma Statutes;

1 230. Falsify information on permit application for Oklahoma
2 Solid Waste Management Act, as provided for in Section 2-10-302 of
3 Title 27A of the Oklahoma Statutes;

4 231. Violation of use of solid waste disposal sites, as
5 provided for in Section 2-10-801 of Title 27A of the Oklahoma
6 Statutes;

7 232. Filing false sale with Insurance Commissioner, as provided
8 for in Section 311.1 of Title 36 of the Oklahoma Statutes;

9 233. Selling insurance with revoked or suspended license, as
10 provided for in subsection A of Section 1435.26 of Title 36 of the
11 Oklahoma Statutes;

12 234. Aiding or conspiring with a person whose insurance license
13 is revoked or suspended, as provided for in subsection B of Section
14 1435.26 of Title 36 of the Oklahoma Statutes;

15 235. False statements, reports, or filings with intent to
16 deceive Insurance Commissioner, as provided for in subsection E of
17 Section 1643 of Title 36 of the Oklahoma Statutes;

18 236. Violation of the Viatical Settlements Act of 2008, value
19 from Five Hundred Dollars (\$500.00) to Two Thousand Five Hundred
20 Dollars (\$2,500.00), as provided for in subsection F of Section
21 4055.14 of Title 36 of the Oklahoma Statutes;

22 237. Violation of prepaid funeral provisions, as provided for
23 in Section 6130 of Title 36 of the Oklahoma Statutes;

1 238. Out-of-state retailer shipping alcoholic beverages into
2 state, as provided for in Section 3-101 of Title 37A of the Oklahoma
3 Statutes;

4 239. Permit invitee under twenty-one (21) to possess or consume
5 alcohol, as provided for in subsection A of Section 6-101 of Title
6 37A of the Oklahoma Statutes;

7 240. Permit invitee under twenty-one (21) to possess or consume
8 alcohol resulting in great bodily injury or death, as provided for
9 in subsection C of Section 6-101 of Title 37A of the Oklahoma
10 Statutes;

11 241. Sale of alcoholic beverages outside of authorized day or
12 hours, as provided for in Section 6-123 of Title 37A of the Oklahoma
13 Statutes;

14 242. Disclosing confidential information concerning violation
15 of Employment Security Act of 1980, as provided for in Section 4-508
16 of Title 40 of the Oklahoma Statutes;

17 243. Hiring armed guards without permit, as provided for in
18 Section 169 of Title 40 of the Oklahoma Statutes;

19 244. Causing employee death by commanding to enter steam
20 boiler, as provided for in Section 183 of Title 40 of the Oklahoma
21 Statutes;

22 245. False statement about lien by contractor, as provided for
23 in Section 142.4 of Title 42 of the Oklahoma Statutes;

1 246. Mechanics liens/embezzlement, valued from Two Thousand
2 Five Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
3 (\$15,000.00), as provided for in Section 142.6 of Title 42 of the
4 Oklahoma Statutes;

5 247. Marrying prohibited persons, as provided for in Section 14
6 of Title 43 of the Oklahoma Statutes;

7 248. Bigamy and remarriage, as provided for in Section 123 of
8 Title 43 of the Oklahoma Statutes;

9 249. Mistreatment of mental health patient, as provided for in
10 Section 2-219 of Title 43A of the Oklahoma Statutes;

11 250. Violation of opioid substitution treatment program, as
12 provided for in Section 3-601 of Title 43A of the Oklahoma Statutes;

13 251. Coerce another to execute a declaration of revocation of
14 an advanced directive, as provided for in subsection D of Section
15 11-113 of Title 43A of the Oklahoma Statutes;

16 252. Unauthorized use of implement of husbandry, as provided
17 for in subsection B of Section 4-102 of Title 47 of the Oklahoma
18 Statutes;

19 253. Receive, possess, or conceal implement of husbandry, as
20 provided for in subsection B of Section 4-103 of Title 47 of the
21 Oklahoma Statutes;

22 254. Removed, falsified, or unauthorized identification, as
23 provided for in subsection A of Section 4-107 of Title 47 of the
24 Oklahoma Statutes;

1 255. Buy, receive, possess, or sell motor vehicle with VIN
2 removed or defaced with intent to conceal, as provided for in
3 subsection C of Section 4-107 of Title 47 of the Oklahoma Statutes;

4 256. Destroying, removing, altering, covering, or
5 counterfeiting trim tag plates, as provided for in Section 4-107a of
6 Title 47 of the Oklahoma Statutes;

7 257. Misuse of manufactured home certificate of title, as
8 provided for in subsection B of Section 4-110 of Title 47 of the
9 Oklahoma Statutes;

10 258. Alter manufactured home certificate of title, as provided
11 for in subsection B of Section 4-110 of Title 47 of the Oklahoma
12 Statutes;

13 259. Remove receipt with intent to misrepresent payment of tax
14 or fees, as provided for in subsection B of Section 4-110 of Title
15 47 of the Oklahoma Statutes;

16 260. Purchase registration receipt on assigned certificate of
17 title, as provided for in subsection B of Section 4-110 of Title 47
18 of the Oklahoma Statutes;

19 261. Misuse of forged, counterfeit, or suspended driver
20 license, as provided for in Section 6-301 of Title 47 of the
21 Oklahoma Statutes;

22 262. Perjury through false affidavit, as provided for in
23 Section 6-302 of Title 47 of the Oklahoma Statutes;

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1 263. Interference with traffic control device resulting in
2 injury or death, as provided for in subsection B of Section 11-207
3 of Title 47 of the Oklahoma Statutes;

4 264. Buy, sell, or dispose vehicle with altered VIN, chop shop,
5 as provided for in subsection C of Section 1503 of Title 47 of the
6 Oklahoma Statutes;

7 265. Attempt to violate chop shop laws, as provided for in
8 subsection D of Section 1503 of Title 47 of the Oklahoma Statutes;

9 266. Perjury before the Corporation Commission, as provided for
10 in Section 108 of Title 52 of the Oklahoma Statutes;

11 267. Delay probation duties of the Corporation Commission with
12 use or attempted use of firearms, as provided for in Section 114 of
13 Title 52 of the Oklahoma Statutes;

14 268. Conspiracy to violate Oklahoma Oil and Gas Conservation
15 Act, as provided for in Section 115 of Title 52 of the Oklahoma
16 Statutes;

17 269. Corruption of Corporation Commission, as provided for in
18 Section 117 of Title 52 of the Oklahoma Statutes;

19 270. Misappropriation of gas, as provided for in Section 235 of
20 Title 52 of the Oklahoma Statutes;

21 271. Falsification of application for emergency relief, as
22 provided for in Section 26.18 of Title 56 of the Oklahoma Statutes;

23 272. Medicaid fraud, as provided for in Section 1005 of Title
24 56 of the Oklahoma Statutes;

1 273. Fraudulently obtaining or receiving assistance, value of
2 Five Thousand Dollars (\$5,000.00) or more, as provided for in
3 Section 1005.1 of Title 56 of the Oklahoma Statutes;

4 274. Carry contraband into jail or prison, as provided for in
5 subsection B of Section 21 of Title 57 of the Oklahoma Statutes;

6 275. Possess cell phone in jail or prison, as provided for in
7 subsection E of Section 21 of Title 57 of the Oklahoma Statutes;

8 276. Jail employee receiving compensation from inmate, value of
9 Five Hundred Dollars (\$500.00) or more, as provided for in Section
10 22 of Title 57 of the Oklahoma Statutes;

11 277. Use of convict labor on private property, as provided for
12 in Section 222 of Title 57 of the Oklahoma Statutes;

13 278. Failure to comply with Mary Rippy Violent Crime Offenders
14 Registration Act, as provided for in Section 599 of Title 57 of the
15 Oklahoma Statutes;

16 279. Practicing dentistry without a license, as provided for in
17 subsection B of Section 328.49 of Title 59 of the Oklahoma Statutes;

18 280. Giving false information to obtain license, as provided
19 for in subsection B of Section 328.49 of Title 59 of the Oklahoma
20 Statutes;

21 281. Impersonating a pharmacist, as provided for in Section
22 353.17A of Title 59 of the Oklahoma Statutes;

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1 282. Alteration of prescription or unlawful dispensing of
2 drugs, second violation, as provided for in Section 353.24 of Title
3 59 of the Oklahoma Statutes;

4 283. False representation in procuring license under the
5 Oklahoma Pharmacy Act, as provided for in subsection B of Section
6 353.25 of Title 59 of the Oklahoma Statutes;

7 284. Cremation without license and permit, as provided for in
8 Section 396.33 of Title 59 of the Oklahoma Statutes;

9 285. Practicing medicine without a license, as provided for in
10 Section 491 of Title 59 of the Oklahoma Statutes;

11 286. Violation of the Oklahoma Osteopathic Medicine Act, as
12 provided for in Section 638 of Title 59 of the Oklahoma Statutes;

13 287. Acting as building inspector without a license, as
14 provided for in Section 1044 of Title 59 of the Oklahoma Statutes;

15 288. Affidavit as to undertaking, as provided for in Section
16 1322 of Title 59 of the Oklahoma Statutes;

17 289. Bail jumping, as provided for in Section 1335 of Title 59
18 of the Oklahoma Statutes;

19 290. False declaration of ownership in pawn shop, value of One
20 Thousand Dollars (\$1,000.00) or more, if property is firearms, or
21 was acquired through robbery or burglary, as provided for in
22 subsection C of Section 1512 of Title 59 of the Oklahoma Statutes;
23
24

1 291. Violation of Oklahoma Security Guard and Private
2 Investigator Act, as provided for in subsection B of Section 1750.11
3 of Title 59 of the Oklahoma Statutes;

4 292. Collusion among bidders, as provided for in Section 115 of
5 Title 61 of the Oklahoma Statutes;

6 293. Disclosure of terms of bids, as provided for in Section
7 116 of Title 61 of the Oklahoma Statutes;

8 294. False or illegal voucher by public official, as provided
9 for in Section 81 of Title 62 of the Oklahoma Statutes;

10 295. Use of facsimile signature or seal with intent to defraud,
11 as provided for in Section 604 of Title 62 of the Oklahoma Statutes;

12 296. Distribution of controlled substance, possession with
13 intent, Schedule III, IV, and V drugs, as provided for in subsection
14 A of Section 2-401 of Title 63 of the Oklahoma Statutes;

15 297. Distribution of counterfeit controlled substance,
16 possession with intent, Schedule III, IV, and V drugs, as provided
17 for in subsection A of Section 2-401 of Title 63 of the Oklahoma
18 Statutes;

19 298. Robbery of controlled dangerous substance, as provided for
20 in subsection B of Section 2-403 of Title 63 of the Oklahoma
21 Statutes;

22 299. Distribute or dispense controlled substance without
23 required order form, as provided for in subsection A of Section 2-
24 404 of Title 63 of the Oklahoma Statutes;

1 300. Manufacture, distribute, or dispense controlled substance
2 not authorized by registration, as provided for in subsection A of
3 Section 2-404 of Title 63 of the Oklahoma Statutes;

4 301. Omit, remove, alter, or obliterate symbol required on
5 controlled substance, as provided for in subsection A of Section 2-
6 404 of Title 63 of the Oklahoma Statutes;

7 302. Refuse or fail to make, keep, or furnish required
8 information, as provided for in subsection A of Section 2-404 of
9 Title 63 of the Oklahoma Statutes;

10 303. Refuse entry or inspection of premises with respect to
11 controlled substance, as provided for in subsection A of Section 2-
12 404 of Title 63 of the Oklahoma Statutes;

13 304. Maintain place for keeping or selling controlled
14 substance, as provided for in subsection A of Section 2-404 of Title
15 63 of the Oklahoma Statutes;

16 305. Sell, transfer, or provide money transmitter equipment to
17 unlicensed person, second or subsequent offense, as provided for in
18 subsection A of Section 2-503.1d of Title 63 of the Oklahoma
19 Statutes;

20 306. Responsibility of permit holders, as provided for in
21 subsection A of Section 124.8 of Title 63 of the Oklahoma Statutes;

22 307. Purchase or sell body parts for transplantation, as
23 provided for in Section 2200.16A of Title 63 of the Oklahoma
24 Statutes;

1 308. Falsification, forgery, concealment, defacement, or
2 obliteration of document of gift, as provided for in Section
3 2200.17A of Title 63 of the Oklahoma Statutes;

4 309. Unlawful possession of vessel or motor, as provided for in
5 Section 4209 of Title 63 of the Oklahoma Statutes;

6 310. Receive, possess, sell, or dispose of stolen vessel or
7 motor, as provided for in Section 4209.1 of Title 63 of the Oklahoma
8 Statutes;

9 311. Remove or alter ID number of vessel, as provided for in
10 subsection B of Section 4209.2 of Title 63 of the Oklahoma Statutes;

11 312. Buy, receive, possess, or dispose of vessel with false ID
12 number with intent to conceal, as provided for in subsection D of
13 Section 4209.2 of Title 63 of the Oklahoma Statutes;

14 313. False statement in application for certificate of title
15 for stolen vehicle, as provided for in Section 4209.3 of Title 63 of
16 the Oklahoma Statutes;

17 314. Alteration or forging of vessel certificate of title, as
18 provided for in Section 4209.4 of Title 63 of the Oklahoma Statutes;

19 315. Possess vessel with altered ID number, as provided for in
20 subsection C of Section 4253 of Title 63 of the Oklahoma Statutes;

21 316. Destroying or falsifying checks to the Land Office, as
22 provided for in Section 1026 of Title 64 of the Oklahoma Statutes;

23 317. Prospecting on public lands without permit, as provided
24 for in Section 1094 of Title 64 of the Oklahoma Statutes;

1 318. Business for profit by a member of the Department of
2 Transportation, as provided for in subsection B of Section 304 of
3 Title 66 of the Oklahoma Statutes;

4 319. Business for profit by a member of the Department of
5 Transportation, as provided for in subsection B of Section 324 of
6 Title 66 of the Oklahoma Statutes;

7 320. Failure to comply with request for county records, as
8 provided for in Section 83 of Title 67 of the Oklahoma Statutes;

9 321. Refusal to file tax return with intent to defraud, as
10 provided for in Section 240.1 of Title 68 of the Oklahoma Statutes;

11 322. Filing false sales tax report, as provided for in Section
12 241 of Title 68 of the Oklahoma Statutes;

13 323. Possession of controlled dangerous substances without tax
14 stamp, as provided for in Section 450.8 of Title 68 of the Oklahoma
15 Statutes;

16 324. Remove tax stamp with intent to reuse, as provided for in
17 Section 450.9 of Title 68 of the Oklahoma Statutes;

18 325. Making false oath to report required by Cotton
19 Manufacturers Act, as provided for in Section 2003 of Title 68 of
20 the Oklahoma Statutes;

21 326. File false income tax return with intent to defraud, as
22 provided for in Section 2376 of Title 68 of the Oklahoma Statutes;

23 327. Fraudulent tax receipt by county treasurer, as provided
24 for in Section 2920 of Title 68 of the Oklahoma Statutes;

1 328. False or fraudulent lists of taxable property, as provided
2 for in Section 2945 of Title 68 of the Oklahoma Statutes;

3 329. False application under Oklahoma Quality Jobs Program Act,
4 as provided for in Section 3609 of Title 68 of the Oklahoma
5 Statutes;

6 330. False application under Former Military Facility
7 Development Act, as provided for in Section 3807 of Title 68 of the
8 Oklahoma Statutes;

9 331. False application under Oklahoma Specialized Quality
10 Investment Act, as provided for in Section 4109 of Title 68 of the
11 Oklahoma Statutes;

12 332. False application under Oklahoma Quality Investment Act,
13 as provided for in Section 4209 of Title 68 of the Oklahoma
14 Statutes;

15 333. Conflict of interest by a member of the Transportation
16 Commission, as provided for in Section 310 of Title 69 of the
17 Oklahoma Statutes;

18 334. Conflict of interest by a member of the Oklahoma Turnpike
19 Authority, as provided for in Section 1705 of Title 69 of the
20 Oklahoma Statutes;

21 335. Violation of Oklahoma Highway Code of 1968, as provided
22 for in Section 1802 of Title 69 of the Oklahoma Statutes;

1 336. Conflict of interest by Oklahoma Educational Television
2 Authority member, as provided for in Section 23-106 of Title 70 of
3 the Oklahoma Statutes;

4 337. Alter or destroy audit records by Board of Regents, as
5 provided for in subsection E of Section 3909 of Title 70 of the
6 Oklahoma Statutes;

7 338. Authority to receive gifts or funds, as provided for in
8 subsection B of Section 4306 of Title 70 of the Oklahoma Statutes;

9 339. Make takeover offer which is not effective under Oklahoma
10 Take-over Disclosure Act of 1985, as provided for in subsection A of
11 Section 453 of Title 71 of the Oklahoma Statutes;

12 340. Fraudulent, deceptive, or manipulative acts in takeover
13 offer, as provided for in Section 455 of Title 71 of the Oklahoma
14 Statutes;

15 341. Violation of Oklahoma Take-over Disclosure Act of 1985, as
16 provided for in Section 460 of Title 71 of the Oklahoma Statutes;

17 342. Conflict of interest by Oklahoma Capitol Improvement
18 Authority member, as provided for in Section 162 of Title 73 of the
19 Oklahoma Statutes;

20 343. Fraud in obtaining certification as a minority business,
21 as provided for in Section 85.45h of Title 74 of the Oklahoma
22 Statutes;

1 344. False statement for small business surety bond guarantee,
2 as provided for in Section 85.47h of Title 74 of the Oklahoma
3 Statutes;

4 345. Forge or alter criminal history record, as provided for in
5 subsection D of Section 150.9 of Title 74 of the Oklahoma Statutes;

6 346. Making or receiving kickback, as provided for in Section
7 3404 of Title 74 of the Oklahoma Statutes;

8 347. Pooling of bridge or highway contracts, as provided for in
9 Section 101 of Title 79 of the Oklahoma Statutes;

10 348. Business for profit by Water Resources Board member, as
11 provided for in Section 1086.3 of Title 82 of the Oklahoma Statutes;

12 349. Conflict of interest by water district official or
13 employee, as provided for in Section 1281 of Title 82 of the
14 Oklahoma Statutes;

15 350. Falsely executes a written declaration as a witness to a
16 will, as provided for in paragraph 6 of Section 55 of Title 84 of
17 the Oklahoma Statutes; and

18 351. False statement and misrepresentation, as provided for in
19 Section 6 of Title 85A of the Oklahoma Statutes.

20 B. Any person convicted of a Class D1 criminal offense set
21 forth in this section shall be punished by imprisonment in the
22 custody of the Department of Corrections for a term of not more than
23 five (5) years and shall serve at least twenty percent (20%) of the
24 sentence imposed before release from custody including release to

1 electronic monitoring pursuant to Section 510.9 of Title 57 of the
2 Oklahoma Statutes.

3 C. 1. Every person who, having been previously convicted of
4 one or two Class C or Class D criminal offenses, commits a Class D1
5 criminal offense shall, upon conviction, be punished by imprisonment
6 in the custody of the Department of Corrections for a term of not
7 less than one (1) year nor more than seven (7) years and shall serve
8 at least twenty percent (20%) of the sentence imposed before release
9 from custody including release to electronic monitoring pursuant to
10 Section 510.9 of Title 57 of the Oklahoma Statutes.

11 2. Every person who, having been previously convicted of three
12 Class C or Class D criminal offenses, or one or more Class Y, Class
13 A, or Class B criminal offenses, commits a Class D1 criminal offense
14 shall, upon conviction, be punished by imprisonment in the custody
15 of the Department of Corrections for a term of not less than two (2)
16 years nor more than ten (10) years and shall serve at least thirty
17 percent (30%) of the sentence imposed before release from custody
18 including release to electronic monitoring pursuant to Section 510.9
19 of Title 57 of the Oklahoma Statutes.

20 D. Unless specifically exempted pursuant to subsection E of
21 this section, Section 51.1 of Title 21 of the Oklahoma Statutes
22 shall not apply to Class D1 criminal offenses.

23 E. The criminal offenses listed in paragraphs 98, 108, 212,
24 213, and 229 of subsection A of this section shall be exempt from

1 the penalty provisions provided for in subsections B and C of this
2 section. Persons convicted of the criminal offenses provided for in
3 paragraphs 98, 108, 212, 213, and 229 of subsection A of this
4 section shall be punished in accordance with the corresponding
5 penalties provided for in the Oklahoma Statutes including Section
6 51.1 of Title 21 of the Oklahoma Statutes.

7 F. All Class D1 criminal offenses shall be punishable by the
8 corresponding fines as provided for in the Oklahoma Statutes.

9 SECTION 10. AMENDATORY 21 O.S. 2021, Section 843.5, as
10 amended by Section 2, Chapter 151, O.S.L. 2024 (21 O.S. Supp. 2024,
11 Section 843.5), is amended to read as follows:

12 Section 843.5. A. Any person who shall willfully or
13 maliciously engage in child abuse, as defined in this section,
14 shall, upon conviction, be guilty of a felony punishable by
15 imprisonment in the custody of the Department of Corrections not
16 exceeding life imprisonment, or by imprisonment in a county jail not
17 exceeding one (1) year, or by a fine of not less than Five Hundred
18 Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00),
19 or both such fine and imprisonment.

20 B. Any person responsible for the health, safety or welfare of
21 a child who shall willfully or maliciously engage in enabling child
22 abuse, as defined in this section, shall, upon conviction, be
23 punished by imprisonment in the custody of the Department of
24 Corrections not exceeding life imprisonment, or by imprisonment in a

1 county jail not exceeding one (1) year, or by a fine of not less
2 than Five Hundred Dollars (\$500.00) nor more than Five Thousand
3 Dollars (\$5,000.00), or both such fine and imprisonment.

4 C. Any person responsible for the health, safety or welfare of
5 a child who shall willfully or maliciously engage in child neglect,
6 as defined in this section, shall, upon conviction, be punished by
7 imprisonment in the custody of the Department of Corrections not
8 exceeding life imprisonment, or by imprisonment in a county jail not
9 exceeding one (1) year, or by a fine of not less than Five Hundred
10 Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00),
11 or both such fine and imprisonment.

12 D. Any parent or other person who shall willfully or
13 maliciously engage in enabling child neglect shall, upon conviction,
14 be punished by imprisonment in the custody of the Department of
15 Corrections not exceeding life imprisonment, or by imprisonment in a
16 county jail not exceeding one (1) year, or by a fine of not less
17 than Five Hundred Dollars (\$500.00) nor more than Five Thousand
18 Dollars (\$5,000.00), or both such fine and imprisonment.

19 E. Any person responsible for the health, safety or welfare of
20 a child who shall willfully or maliciously engage in child sexual
21 abuse, as defined in this section, shall, upon conviction, be
22 punished by imprisonment in the custody of the Department of
23 Corrections not exceeding life imprisonment, or by imprisonment in a
24 county jail not exceeding one (1) year, or by a fine of not less

1 than Five Hundred Dollars (\$500.00) nor more than Five Thousand
2 Dollars (\$5,000.00), or both such fine and imprisonment, except as
3 provided in Section 51.1a of this title or as otherwise provided in
4 subsection F of this section for a child victim under twelve (12)
5 years of age. Except for persons sentenced to life or life without
6 parole, any person sentenced to imprisonment for two (2) years or
7 more for a violation of this subsection shall be required to serve a
8 term of post-imprisonment supervision pursuant to subparagraph f of
9 paragraph 1 of subsection A of Section 991a of Title 22 of the
10 Oklahoma Statutes under conditions determined by the Department of
11 Corrections. The jury shall be advised that the mandatory post-
12 imprisonment supervision shall be in addition to the actual
13 imprisonment.

14 F. Any person responsible for the health, safety or welfare of
15 a child who shall willfully or maliciously engage in child sexual
16 abuse, as defined in this section, to a child under twelve (12)
17 years of age shall, upon conviction, be punished by imprisonment in
18 the custody of the Department of Corrections for not less than
19 twenty-five (25) years nor more than life imprisonment, and by a
20 fine of not less than Five Hundred Dollars (\$500.00) nor more than
21 Five Thousand Dollars (\$5,000.00).

22 G. Any parent or other person who shall willfully or
23 maliciously engage in enabling child sexual abuse shall, upon
24 conviction, be punished by imprisonment in the custody of the

1 Department of Corrections not exceeding life imprisonment, or by
2 imprisonment in a county jail not exceeding one (1) year, or by a
3 fine of not less than Five Hundred Dollars (\$500.00) nor more than
4 Five Thousand Dollars (\$5,000.00), or both such fine and
5 imprisonment.

6 H. Any person who shall willfully or maliciously engage in
7 child sexual exploitation, as defined in this section, shall, upon
8 conviction, be punished by imprisonment in the custody of the
9 Department of Corrections not exceeding life imprisonment, or by
10 imprisonment in a county jail not exceeding one (1) year, or by a
11 fine of not less than Five Hundred Dollars (\$500.00) nor more than
12 Five Thousand Dollars (\$5,000.00), or both such fine and
13 imprisonment, except as provided in subsection I of this section for
14 a child victim under twelve (12) years of age. Except for persons
15 sentenced to life or life without parole, any person sentenced to
16 imprisonment for two (2) years or more for a violation of this
17 subsection shall be required to serve a term of post-imprisonment
18 supervision pursuant to subparagraph f of paragraph 1 of subsection
19 A of Section 991a of Title 22 of the Oklahoma Statutes under
20 conditions determined by the Department of Corrections. The jury
21 shall be advised that the mandatory post-imprisonment supervision
22 shall be in addition to the actual imprisonment.

23 I. Any person who shall willfully or maliciously engage in
24 child sexual exploitation, as defined in this section, of a child

1 under twelve (12) years of age shall, upon conviction, be punished
2 by imprisonment in the custody of the Department of Corrections for
3 not less than twenty-five (25) years nor more than life
4 imprisonment, and by a fine of not less than Five Hundred Dollars
5 (\$500.00) nor more than Five Thousand Dollars (\$5,000.00).

6 J. Any person responsible for the health, safety or welfare of
7 a child who shall willfully or maliciously engage in enabling child
8 sexual exploitation, as defined in this section, shall, upon
9 conviction, be punished by imprisonment in the custody of the
10 Department of Corrections not exceeding life imprisonment, or by
11 imprisonment in a county jail not exceeding one (1) year, or by a
12 fine of not less than Five Hundred Dollars (\$500.00) nor more than
13 Five Thousand Dollars (\$5,000.00), or both such fine and
14 imprisonment.

15 K. Notwithstanding any other provision of law, any person
16 convicted of forcible anal or oral sodomy, rape, rape by
17 instrumentation, or lewd molestation of a child under fourteen (14)
18 years of age subsequent to a previous conviction for any offense of
19 forcible anal or oral sodomy, rape, rape by instrumentation, or lewd
20 molestation of a child under fourteen (14) years of age shall be
21 punished by death or by imprisonment for life without parole.

22 L. Provided, however, that nothing contained in this section
23 shall prohibit any parent or guardian from using reasonable and
24 ordinary force pursuant to Section 844 of this title.

1 M. Consent shall not be a defense for any violation provided
2 for in this section.

3 N. Notwithstanding the age requirements of other statutes
4 referenced within this section, this section shall apply to any
5 child under eighteen (18) years of age.

6 O. As used in this section:

7 1. "Child abuse" means:

8 a. the willful or malicious harm or threatened harm or
9 failure to protect from harm or threatened harm to the
10 health, safety or welfare of a child under eighteen
11 (18) years of age by a person responsible for a
12 child's health, safety or welfare, or

13 b. the act of willfully or maliciously injuring,
14 torturing or maiming a child under eighteen (18) years
15 of age by any person;

16 2. "Child neglect" means the willful or malicious neglect, as
17 defined by Section 1-1-105 of Title 10A of the Oklahoma Statutes, of
18 a child under eighteen (18) years of age by a person responsible for
19 a child's health, safety or welfare;

20 3. "Child sexual abuse" means the willful or malicious sexual
21 abuse of a child under eighteen (18) years of age by a person
22 responsible for a child's health, safety or welfare and includes,
23 but is not limited to:

24 a. sexual intercourse,

- b. penetration of the vagina or anus, however slight, by an inanimate object or any part of the human body not amounting to sexual intercourse,
- c. sodomy,
- d. incest, or
- e. a lewd act or proposal, as defined in this section;

4. "Child sexual exploitation" means the willful or malicious sexual exploitation of a child under eighteen (18) years of age by another and includes, but is not limited to:

- a. human trafficking, as provided for in Section 748 of this title, if the offense involved child trafficking for commercial sex,
- b. trafficking in children, as provided for in Section 866 of this title, if the offense was committed for the sexual gratification of any person,
- c. procuring or causing the participation of a minor in child ~~pornography~~ sexual abuse material, as provided for in Section 1021.2 of this title,
- d. purchase, procurement or possession of child ~~pornography~~ sexual abuse material, as provided for in Section 1024.2 of this title,
- e. engaging in or soliciting prostitution, as provided for in Section 1029 of this title, if the offense involved child sex trafficking,

- f. publication, distribution or participation in the preparation of obscene material, as provided for in Section 1040.8 of this title, if the offense involved child ~~pornography~~ sexual abuse material,
- g. aggravated possession of child ~~pornography~~ sexual abuse material, as provided for in Section 1040.12a of this title,
- h. sale or distribution of obscene material, as provided for in Section 1040.13 of this title,
- i. soliciting sexual conduct or communication with a minor by use of technology, as provided for in Section 1040.13a of this title,
- j. offering or transporting a child for purposes of child sex trafficking, as provided for in Section 1087 of this title, and
- k. child sex trafficking, as provided for in Section 1088 of this title;

5. "Enabling child abuse" means the causing, procuring or permitting of child abuse by a person responsible for a child's health, safety or welfare;

6. "Enabling child neglect" means the causing, procuring or permitting of child neglect by a person responsible for a child's health, safety or welfare;

1 7. "Enabling child sexual abuse" means the causing, procuring
2 or permitting of child sexual abuse by a person responsible for a
3 child's health, safety or welfare;

4 8. "Enabling child sexual exploitation" means the causing,
5 procuring or permitting of child sexual exploitation by a person
6 responsible for a child's health, safety or welfare;

7 9. "Incest" means marrying, committing adultery or fornicating
8 with a child by a person responsible for the health, safety or
9 welfare of a child;

10 10. "Lewd act or proposal" means:

- 11 a. making any oral, written or electronic or computer-
12 generated lewd or indecent proposal to a child for the
13 child to have unlawful sexual relations or sexual
14 intercourse with any person,
- 15 b. looking upon, touching, mauling or feeling the body or
16 private parts of a child in a lewd or lascivious
17 manner or for the purpose of sexual gratification,
- 18 c. asking, inviting, enticing or persuading any child to
19 go alone with any person to a secluded, remote or
20 secret place for a lewd or lascivious purpose,
- 21 d. urinating or defecating upon a child or causing,
22 forcing or requiring a child to defecate or urinate
23 upon the body or private parts of another person for
24 the purpose of sexual gratification,

- e. ejaculating upon or in the presence of a child,
- f. causing, exposing, forcing or requiring a child to look upon the body or private parts of another person for the purpose of sexual gratification,
- g. causing, forcing or requiring any child to view any obscene materials, child ~~pornography~~ sexual abuse material or materials deemed harmful to minors as such terms are defined in Sections 1024.1 and 1040.75 of this title,
- h. causing, exposing, forcing or requiring a child to look upon sexual acts performed in the presence of the child for the purpose of sexual gratification, or
- i. causing, forcing or requiring a child to touch or feel the body or private parts of the child or another person for the purpose of sexual gratification;

11. "Permit" means to authorize or allow for the care of a child by an individual when the person authorizing or allowing such care knows or reasonably should know that the child will be placed at risk of the conduct or harm proscribed by this section;

12. "Person responsible for a child's health, safety or welfare" for purposes of this section shall include, but not be limited to:

- a. the parent of the child,
- b. the legal guardian of the child,

- c. the custodian of the child,
- d. the foster parent of the child,
- e. a person eighteen (18) years of age or older with whom the parent of the child cohabitates, who is at least three (3) years older than the child,
- f. any other person eighteen (18) years of age or older residing in the home of the child, who is at least three (3) years older than the child,
- g. an owner, operator, agent, employee or volunteer of a public or private residential home, institution, facility or day treatment program, as defined in Section 175.20 of Title 10 of the Oklahoma Statutes, that the child attended,
- h. an owner, operator, agent, employee or volunteer of a child care facility, as defined in Section 402 of Title 10 of the Oklahoma Statutes, that the child attended,
- i. an intimate partner of the parent of the child, as defined in Section 60.1 of Title 22 of the Oklahoma Statutes, or
- j. a person who has voluntarily accepted responsibility for the care or supervision of a child;

13. "Sexual intercourse" means the actual penetration, however slight, of the vagina or anus by the penis; and

1 14. "Sodomy" means:

- 2 a. penetration, however slight, of the mouth of the child
3 by a penis,
- 4 b. penetration, however slight, of the vagina of a person
5 responsible for a child's health, safety or welfare,
6 by the mouth of a child,
- 7 c. penetration, however slight, of the mouth of the
8 person responsible for a child's health, safety or
9 welfare by the penis of the child, or
- 10 d. penetration, however slight, of the vagina of the
11 child by the mouth of the person responsible for a
12 child's health, safety or welfare.

13 SECTION 11. AMENDATORY 21 O.S. 2021, Section 1021.2, as
14 amended by Section 1, Chapter 103, O.S.L. 2024 (21 O.S. Supp. 2024,
15 Section 1021.2), is amended to read as follows:

16 Section 1021.2. A. Any person who shall procure or cause the
17 participation of any minor under the age of eighteen (18) years in
18 any child ~~pornography~~ sexual abuse material or obscene material or
19 who knowingly possesses, views, accesses, shares, streams,
20 downloads, procures, sells, distributes, or manufactures, or causes
21 to be possessed, viewed, accessed, shared, streamed, downloaded,
22 procured, sold, distributed, or manufactured any child ~~pornography~~
23 sexual abuse material shall, upon conviction, be guilty of a felony
24 and shall be punished by imprisonment in the custody of the

1 Department of Corrections for not more than twenty (20) years and by
2 the imposition of a fine of not more than Twenty-five Thousand
3 Dollars (\$25,000.00). Persons convicted under this section shall
4 not be eligible for a deferred sentence. Except for persons
5 sentenced to life or life without parole, any person sentenced to
6 imprisonment for two (2) years or more for a violation of this
7 subsection shall be required to serve a term of post-imprisonment
8 supervision pursuant to subparagraph f of paragraph 1 of subsection
9 A of Section 991a of Title 22 of the Oklahoma Statutes under
10 conditions determined by the Department of Corrections. The jury
11 shall be advised that the mandatory post-imprisonment supervision
12 shall be in addition to the actual imprisonment.

13 B. The consent of the minor, or of the mother, father, legal
14 guardian, or custodian of the minor to the activity prohibited by
15 this section shall not constitute a defense.

16 SECTION 12. AMENDATORY 21 O.S. 2021, Section 1024.1, as
17 amended by Section 2, Chapter 103, O.S.L. 2024 (21 O.S. Supp. 2024,
18 Section 1024.1), is amended to read as follows:

19 Section 1024.1. A. As used in Sections 1021, 1021.1 through
20 1021.4, Sections 1022, 1023, and Sections 1040.8 through 1040.24 of
21 this title, ~~"child pornography"~~ "child sexual abuse material" means:

22 1. Any visual depiction of a child engaged in any act of
23 sexually explicit conduct;

24

1 2. Any visual depiction of a child that has been adapted,
2 altered, or modified so that the child depicted appears to be
3 engaged in any act of sexually explicit conduct; or

4 3. Any visual depiction that appears to be a child, regardless
5 of whether the image is a depiction of an actual child, a computer-
6 generated image, or an image altered to appear to be a child,
7 engaged in any act of sexually explicit conduct, and such visual
8 depiction is obscene.

9 B. Each visual depiction or individual image of child
10 pornography shall constitute a separate item and act.

11 C. As used in Sections 1021 through 1024.4 and Sections 1040.8
12 through 1040.24 of this title:

13 1. "Child" means a person under eighteen (18) years of age;

14 2. "Obscene" means any performance or depiction, in any form or
15 on any medium, if said material when taken as a whole:

16 a. appeals to the prurient interest in sex as determined
17 by the average person applying ~~the~~ contemporary
18 community standards of their community,

19 b. depicts, represents, or displays sexually explicit
20 conduct in a patently offensive way as found by the
21 average person applying contemporary community
22 standards, and

1 c. a reasonable person would find the material or
2 performance lacks serious literary, artistic,
3 educational, political, or scientific value.

4 The standard for obscenity applied in this section shall not apply
5 to child sexual abuse material;

6 3. "Performance" means any display, live, recorded, or
7 transmitted, in any form or medium;

8 4. "Sexually explicit conduct" means any of the following
9 whether actual or simulated:

10 a. acts of sexual intercourse, which is normal or
11 perverted,

12 b. acts of oral ~~and~~ or anal sodomy,

13 c. acts of masturbation,

14 d. acts of sexual activity with an animal,

15 e. acts of sadomasochism including:

16 (1) flagellation or torture by or upon any person who
17 is nude or clad in undergarments or in a costume
18 which is of a revealing nature, or

19 (2) the condition of being fettered, bound, or
20 otherwise physically restrained on the part of
21 one who is nude or so clothed,

22 f. acts of excretion in a sexual context, ~~or~~

g. exhibiting genitalia, breast, buttocks, or pubic area
for the purpose of the sexual stimulation of the
viewer~~+~~,

h. acts of fellatio or cunnilingus, or

i. wherein a person under the age of eighteen (18) years
observes such acts or exhibitions;

5. ~~"Explicit child pornography"~~ "Explicit child sexual abuse
material" means material which a law enforcement officer can
immediately identify as child ~~pornography~~ sexual abuse material; and

6. "Visual depiction" means any depiction, picture, movie,
performance, film, motion picture, video, photograph, negative,
undeveloped film, slide, photographic product, reproduction of a
photographic product, play, or image displayed, stored, shared, or
transmitted in any format and on any medium including data that is
capable of being converted into a depiction, picture, movie,
performance, film, motion picture, video, photograph, negative,
undeveloped film, slide, photographic product, reproduction of a
photographic product, play, or image.

The types of sexually explicit conduct described in this section are
intended to include situations when, if appropriate to the type of
conduct, the conduct is performed alone or between members of the
same or opposite sex in an act of apparent sexual stimulation or
gratification.

SECTION 13. AMENDATORY 21 O.S. 2021, Section 1040.12a,
as amended by Section 3, Chapter 103, O.S.L. 2024 (21 O.S. Supp.
2024, Section 1040.12a), is amended to read as follows:

Section 1040.12a. A. Any person who, with knowledge of its
contents, possesses one hundred (100) or more separate visual
depictions or materials of child ~~pornography~~ sexual abuse material
shall, upon conviction, be guilty of aggravated possession of child
~~pornography~~ sexual abuse material. The violator shall be punished
by imprisonment in the custody of the Department of Corrections for
a term not exceeding life imprisonment and by a fine in an amount of
not more than Ten Thousand Dollars (\$10,000.00). The violator, upon
conviction, shall be required to register as a sex offender under
the Sex Offenders Registration Act.

B. For purposes of this section:

1. Multiple copies of the same identical material shall each be
counted as a separate item; ~~and~~

2. The term "material" means that same definition provided by
Section 1040.75 of this title and, in addition, includes all digital
and computerized images and depictions; and

3. The terms "child pornography" "child sexual abuse material"
and "visual depictions" mean the same definitions provided by
Section 1024.1 of this title.

SECTION 14. AMENDATORY 21 O.S. 2021, Section 1040.80, as amended by Section 32, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2024, Section 1040.80), is amended to read as follows:

Section 1040.80. A. As used in this section, the term:

1. "Interactive computer service provider" means any provider to the public of computer access via the Internet to a computer server or similar device used for the storage of graphic, video or images;

2. "Internet" means the international computer network of both federal and nonfederal interoperable packet-switched data networks;

3. "Controlled or owned by" with respect to a server or other storage device means a server or other such device that is entirely owned by the interactive computer service provider or is subject to exclusive management by the interactive computer service provider by agreement or otherwise; and

4. "Child sexual abuse material" means ~~explicit child sexual abuse material as defined~~ the same definition provided in Section 1024.1 of this title.

B. The Attorney General or a law enforcement officer who receives information that an item of alleged child sexual abuse material resides on a server or other storage device controlled or owned by an interactive computer service provider shall:

1 1. Contact the interactive computer service provider that
2 controls or owns the server or other storage device where the item
3 of alleged child sexual abuse material is located;

4 2. Inform the interactive computer service provider of the
5 provisions of this section; and

6 3. Request that the interactive computer service provider
7 voluntarily comply with this section and remove the item of alleged
8 child sexual abuse material from its server or other storage device
9 expeditiously.

10 C. 1. If an interactive computer service does not voluntarily
11 remove the item of alleged child sexual abuse material in a timely
12 manner, the Attorney General or law enforcement officer shall apply
13 for a court order of authorization to remove the item of alleged
14 child sexual abuse material under this section. The obligation to
15 remove the item of alleged child sexual abuse material shall not
16 apply to the transmitting or routing of, or the intermediate,
17 temporary storage or caching of an image, information or data that
18 is otherwise subject to this section.

19 2. The application for a court order shall include:

20 a. the authority of the applicant to make such an
21 application,

22 b. the identity and qualifications of the investigative
23 or law enforcement officer or agency that, in the
24 official scope of that officer's duties or agency's

1 authority, discovered the images, information, or
2 data,

3 c. a particular statement of the facts relied upon by the
4 applicant, including:

- 5 (1) the identity of the interactive computer service,
6 (2) identification of the item of alleged child
7 sexual abuse material discovered on the server or
8 other storage device controlled or owned by an
9 interactive computer service provider,
10 (3) the particular images, information, or data to be
11 removed or to which access is to be disabled
12 identified by uniform resource locator (URL) or
13 Internet protocol (IP) address, a statement
14 certifying that such content resides on a server
15 or storage device controlled or owned by such
16 interactive computer service provider, and
17 (4) the steps taken to obtain voluntary compliance by
18 such interactive computer service provider with
19 the requirements of this act prior to filing the
20 application,

21 d. such additional testimony and documentary evidence in
22 support of the application as the judge may require,
23 and
24

1 e. a showing that there is probable cause to believe that
2 the child sexual abuse material items constitutes a
3 violation of this section.

4 D. The Attorney General shall notify the interactive computer
5 service provider which is identified in the court's order in
6 accordance with the provisions of this section. The Attorney
7 General shall notify an interactive computer service provider upon
8 the issuance of an order authorizing the removal of the items of
9 alleged child sexual abuse material.

10 1. The notice by the Attorney General shall include:

- 11 a. a copy of the application made pursuant to subsection
12 C of this section,
- 13 b. a copy of the court order issued pursuant to
14 subsection K of this section,
- 15 c. notification that the interactive computer service
16 shall remove the item of alleged child sexual abuse
17 material contained in the order which resides on a
18 server or other storage device controlled or owned by
19 such interactive service provider and which are
20 accessible to persons located within this state
21 expeditiously after receipt of the notification,
- 22 d. notification of the criminal penalties for failure to
23 remove the item of child sexual abuse material,

1 e. notification of the right to appeal the court's order,
2 and

3 f. contact information for the Attorney General's Office.

4 2. An interactive computer service may designate an agent
5 within the state to receive notification pursuant to this section.

6 E. The interactive computer service provider has the right to
7 request a hearing before the court imposes any penalty under this
8 section.

9 F. Nothing in this section may be construed as imposing a duty
10 on an interactive computer service provider to actively monitor its
11 service or affirmatively seek evidence of illegal activity on its
12 service.

13 G. Notwithstanding any other provision of law to the contrary,
14 any interactive computer service provider that intentionally
15 violates subsection L of this section commits:

16 1. A misdemeanor for a first offense punishable by a fine of
17 One Thousand Dollars (\$1,000.00);

18 2. A misdemeanor of a high and aggravated nature for a second
19 offense punishable by a fine of Five Thousand Dollars (\$5,000.00);
20 and

21 3. A felony for a third or subsequent offense punishable by a
22 fine of Thirty Thousand Dollars (\$30,000.00) and imprisonment for a
23 maximum of five (5) years.

1 H. The Attorney General shall have concurrent prosecutorial
2 jurisdiction with a district attorney for violation of this section.

3 I. The removal of the alleged item of child sexual abuse
4 material which resides on a server or other storage device, shall
5 not, to the extent possible, interfere with any request of a law
6 enforcement agency to preserve records or other evidence, which may
7 be kept by the interactive computer service provider in the normal
8 course of business.

9 J. Upon consideration of an application for authorization to
10 remove the item of alleged child sexual abuse material that resides
11 on a server or other storage device controlled or owned by an
12 interactive computer service provider as set forth in subsection C
13 of this section, the judge may enter an ex parte order, as requested
14 or as modified, authorizing the removal of the item of alleged child
15 sexual abuse material, if the court determines on the basis of the
16 facts submitted by the applicant that there is or was probable cause
17 for belief that:

18 1. The item of alleged child sexual abuse material constitutes
19 evidence of an act in violation of this section;

20 2. The investigative or law enforcement officer or agency acted
21 within the official scope of that officer's duties or agency's
22 authority, in discovering the images, information, or data and has
23 complied with the requirements of subsection I and subsection K of
24 this section;

1 3. An item of alleged child sexual abuse material resides on
2 the server or other storage device controlled or owned by the
3 interactive computer service provider and is accessible to persons
4 located in the state; and

5 4. In the case of an application, other than a renewal or
6 extension, for an order removing the item of alleged child sexual
7 abuse material which was the subject of a previous order authorizing
8 the removal or disabling of access, the application is based upon
9 new evidence or information different from and in addition to the
10 evidence or information offered to support the prior order.

11 K. Each order authorizing the removal or disabling of access to
12 an alleged item of child sexual abuse material shall contain:

13 1. The name of the judge authorized to issue the order;

14 2. A particular description of the images, information, or data
15 to be removed or access to such disabled, identified by a URL or IP
16 address, and a statement of the particular violation of the section
17 to which the images, information, or data relate;

18 3. The identity of the investigative or law enforcement officer
19 or agency who discovered the images, information, or data and the
20 identity of whoever authorized the application; and

21 4. Such additional information or instruction as the court
22 deems necessary to execute the order.

23 L. The court shall review the application and testimony, if
24 offered, and, upon a finding of probable cause, issue an order that:

1 1. An item of child sexual abuse material resides on a server
2 or other storage device controlled by the interactive computer
3 service provider and is accessible to persons located in the state;

4 2. The interactive computer service provider shall remove the
5 item residing on a server or other storage device controlled or
6 owned by the interactive computer service provider expeditiously
7 after receiving the order, if practical;

8 3. The order shall specify that removal of any item covered by
9 the order shall be accomplished in a fashion that prevents or
10 minimizes the removal of, or restriction of access to, images,
11 information, or data that are not subject to the order;

12 4. Failure of the interactive computer service provider to
13 comply with the court's order is a violation of this section;

14 5. The removal of the item on the server or other storage
15 device controlled or owned by the interactive computer service
16 provider may not unreasonably interfere with a request by a law
17 enforcement agency to preserve records for a reasonable period and
18 in accordance with law; and

19 6. Provides the interactive computer service provider notice
20 and opportunity for a hearing before the court imposes any penalty
21 under this subsection.

22 M. An interactive computer service provider who is served with
23 a court order under subsection L of this section shall remove the
24

1 item of child sexual abuse material that is the subject of the order
2 expeditiously after receiving the court order, if practicable.

3 N. 1. An interactive service provider may petition the court
4 for relief for cause from an order issued under subsection L of this
5 section.

6 2. The petition may be based on considerations of:

7 a. the cost or technical feasibility of compliance with
8 the order, or

9 b. the inability of the interactive computer service
10 provider to comply with the order without also
11 removing data, images or information that are not
12 subject to this section.

13 SECTION 15. AMENDATORY 22 O.S. 2021, Section 40, as
14 amended by Section 8, Chapter 151, O.S.L. 2024 (22 O.S. Supp. 2024,
15 Section 40), is amended to read as follows:

16 Section 40. As used in Sections 40 through 40.3 of this title:

17 1. "Assault and battery with a deadly weapon" means assault and
18 battery with a deadly weapon or other means likely to produce death
19 or great bodily harm as provided in Section 652 of Title 21 of the
20 Oklahoma Statutes;

21 2. "Forcible sodomy" means the act of forcing another person to
22 engage in the detestable and abominable crime against nature
23 pursuant to Sections 886 and 887 of Title 21 of the Oklahoma
24

1 Statutes that is punishable under Section 888 of Title 21 of the
2 Oklahoma Statutes;

3 3. "Kidnapping" means kidnapping or kidnapping for purposes of
4 extortion as provided in Sections 741 and 745 of Title 21 of the
5 Oklahoma Statutes;

6 4. "Member of the immediate family" means the spouse, a child
7 by birth or adoption, a stepchild, a parent by birth or adoption, a
8 stepparent, a grandparent, a grandchild, a sibling or a stepsibling
9 of a victim of first-degree murder;

10 5. "Rape" means an act of sexual intercourse accomplished with
11 a person pursuant to Sections 1111, 1111.1 and 1114 of Title 21 of
12 the Oklahoma Statutes; and

13 6. "Sex offense" means the following crimes:

14 a. sexual assault as provided in Section 681 of Title 21
15 of the Oklahoma Statutes,

16 b. human trafficking for commercial sex as provided in
17 Section 748 of Title 21 of the Oklahoma Statutes,

18 c. sexual abuse or sexual exploitation by a caretaker as
19 provided in Section 843.1 of Title 21 of the Oklahoma
20 Statutes,

21 d. child sexual abuse or child sexual exploitation as
22 provided in Section 843.5 of Title 21 of the Oklahoma
23 Statutes,

24

- e. permitting sexual abuse of a child as provided in Section 852.1 of Title 21 of the Oklahoma Statutes,
- f. incest as provided in Section 885 of Title 21 of the Oklahoma Statutes,
- g. forcible sodomy as provided in Section 888 of Title 21 of the Oklahoma Statutes,
- h. child stealing for purposes of sexual abuse or sexual exploitation as provided in Section 891 of Title 21 of the Oklahoma Statutes,
- i. indecent exposure or solicitation of minors as provided in Section 1021 of Title 21 of the Oklahoma Statutes,
- j. procuring, producing, distributing or possessing child ~~pornography~~ sexual abuse material as provided in Sections 1021.2 and 1024.2 of Title 21 of the Oklahoma Statutes,
- k. parental consent to child ~~pornography~~ sexual abuse material as provided in Section 1021.3 of Title 21 of the Oklahoma Statutes,
- l. aggravated possession of child ~~pornography~~ sexual abuse material as provided in Section 1040.12a of Title 21 of the Oklahoma Statutes,

- 1 m. distributing obscene material or child ~~pornography~~
2 sexual abuse material as provided in Section 1040.13
3 of Title 21 of the Oklahoma Statutes,
4 n. offering or soliciting sexual conduct with a child as
5 provided in Section 1040.13a of Title 21 of the
6 Oklahoma Statutes,
7 o. procuring a child for child sex trafficking or other
8 lewd acts as provided in Section 1087 of Title 21 of
9 the Oklahoma Statutes,
10 p. inducing a child to engage in child sex trafficking as
11 provided in Section 1088 of Title 21 of the Oklahoma
12 Statutes, and
13 q. lewd or indecent proposals or acts to a child or
14 sexual battery as provided in Section 1123 of Title 21
15 of the Oklahoma Statutes.

16 SECTION 16. AMENDATORY 22 O.S. 2021, Section 991h, as
17 amended by Section 10, Chapter 151, O.S.L. 2024 (22 O.S. Supp. 2024,
18 Section 991h), is amended to read as follows:

19 Section 991h. In addition to the other sentencing powers of the
20 court, when sentencing a person who has been convicted, whether upon
21 a verdict or plea of guilty or nolo contendere, or who has received
22 a suspended sentence or any probationary term for a crime or an
23 attempt to commit a crime provided for in:
24

1 1. Section 843.5 of Title 21 of the Oklahoma Statutes, if the
2 offense involved sexual abuse or sexual exploitation, as those terms
3 are defined in Section 1-1-105 of Title 10A of the Oklahoma
4 Statutes;

5 2. Section 681 of Title 21 of the Oklahoma Statutes, if the
6 offense involved sexual assault;

7 3. Section 741 of Title 21 of the Oklahoma Statutes, if the
8 offense involved sexual abuse or sexual exploitation;

9 4. Section 748 of Title 21 of the Oklahoma Statutes, if the
10 offense involved human trafficking for commercial sex;

11 5. Section 843.1 of Title 21 of the Oklahoma Statutes, if the
12 offense involved sexual abuse or sexual exploitation;

13 6. Section 852.1 of Title 21 of the Oklahoma Statutes, if the
14 offense involved sexual abuse of a child;

15 7. Section 866, 885, 886, 888 or 891 of Title 21 of the
16 Oklahoma Statutes, if the offense involved sexual abuse or sexual
17 exploitation;

18 8. Section 1021, 1021.2, 1021.3, 1024.2 or 1029 of Title 21 of
19 the Oklahoma Statutes, if the offense involved child sex
20 trafficking;

21 9. Section 1040.8 of Title 21 of the Oklahoma Statutes, if the
22 offense involved child ~~pornography~~ sexual abuse material; or

23 10. Section 1040.12a, 1040.13, 1040.13a, 1087, 1088, 1111.1,
24 1114 or 1123 of Title 21 of the Oklahoma Statutes,

1 the court shall issue an order that the defendant shall have no
2 contact directly or indirectly with the victim or the family of the
3 victim during the full term of the confinement of the defendant,
4 term of probation, period of deferment or term of confinement and
5 probation of the defendant.

6 SECTION 17. AMENDATORY 57 O.S. 2021, Section 138, as
7 amended by Section 11, Chapter 151, O.S.L. 2024 (57 O.S. Supp. 2024,
8 Section 138), is amended to read as follows:

9 Section 138. A. Except as otherwise provided by law, every
10 inmate of a state correctional institution shall have their term of
11 imprisonment reduced monthly, based upon the class level to which
12 they are assigned. Earned credits may be subtracted from the total
13 credits accumulated by an inmate, upon recommendation of the
14 institution's disciplinary committee, following due process, and
15 upon approval of the warden or superintendent. Each earned credit
16 is equivalent to one (1) day of incarceration. Lost credits may be
17 restored by the warden or superintendent upon approval of the
18 classification committee. If a maximum and minimum term of
19 imprisonment is imposed, the provisions of this subsection shall
20 apply only to the maximum term. No deductions shall be credited to
21 any inmate serving a sentence of life imprisonment; however, a
22 complete record of the inmate's participation in work, school,
23 vocational training, or other approved program shall be maintained
24 by the Department for consideration by the paroling authority. No

1 earned credit deductions shall be credited or recorded for any
2 inmate serving any sentence for a criminal act which resulted in the
3 death of a police officer, a law enforcement officer, an employee of
4 the Department of Corrections, or an employee of a private prison
5 contractor and the death occurred while the police officer, law
6 enforcement officer, employee of the Department of Corrections, or
7 employee of a private prison contractor was acting within the scope
8 of their employment. No earned credit deductions shall be credited
9 or recorded for any person who is referred to an intermediate
10 revocation facility for violating any of the terms and conditions of
11 probation.

12 B. The Department of Corrections is directed to develop a
13 written policy and procedure whereby inmates shall be assigned to
14 one of four class levels determined by an adjustment review
15 committee of the facility to which the inmate is assigned. The
16 policies and procedures developed by the Department shall include,
17 but not be limited to, written guidelines pertaining to awarding
18 credits for rehabilitation, obtaining job skills and educational
19 enhancement, participation in and completion of alcohol/chemical
20 abuse programs, incentives for inmates to accept work assignments
21 and jobs, work attendance and productivity, conduct record,
22 participation in programs, cooperative general behavior, and
23 appearance. When assigning inmates to a class level, the adjustment
24 review committee shall consider all aspects of the policy and

1 procedure developed by the Department including but not limited to
2 the criteria for awarding credits required by this subsection.

3 C. If an inmate is subject to misconduct, nonperformance or
4 disciplinary action, earned credits may be removed according to the
5 policies and procedures developed by the Department. Earned credits
6 removed for misconduct, nonperformance or disciplinary action may be
7 restored as provided by Department policy, if any.

8 D. 1. Class levels shall be as follows:

9 a. Class level 1 shall include inmates not eligible to
10 participate in class levels 2 through 4, and shall
11 include, but not be limited to, inmates on escape
12 status.

13 b. Class level 2 shall include an inmate who has been
14 given a work, education, or program assignment, has
15 received a good evaluation for participation in the
16 work, education, or program assignment, and has
17 received a good evaluation for personal hygiene and
18 maintenance of living area.

19 c. Class level 3 shall include an inmate who has been
20 incarcerated at least three (3) months, has received
21 an excellent work, education, or program evaluation,
22 and has received an excellent evaluation for personal
23 hygiene and maintenance of living area.

1 d. Class level 4 shall include an inmate who has been
2 incarcerated at least eight (8) months, has received
3 an outstanding work, education, or program evaluation,
4 and has received an outstanding evaluation for
5 personal hygiene and maintenance of living area.

6 2. a. Until November 1, 2001, class level corresponding
7 credits are as follows:

8 Class 1 - 0 Credits per month;

9 Class 2 - 22 Credits per month;

10 Class 3 - 33 Credits per month;

11 Class 4 - 44 Credits per month.

12 b. Class level corresponding credits beginning November
13 1, 2001, for inmates who have ever been convicted as
14 an adult or a youthful offender or adjudicated
15 delinquent as a juvenile for a felony offense
16 enumerated in subsection E of this section are as
17 follows:

18 Class 1 - 0 Credits per month;

19 Class 2 - 22 Credits per month;

20 Class 3 - 33 Credits per month;

21 Class 4 - 44 Credits per month.

22 c. Class level corresponding credits beginning November
23 1, 2001, for inmates who have never been convicted as
24 an adult or a youthful offender or adjudicated

delinquent as a juvenile for a felony offense
enumerated in subsection E of this section are as
follows:

Class 1 - 0 Credits per month;

Class 2 - 22 Credits per month;

Class 3 - 45 Credits per month;

Class 4 - 60 Credits per month.

Each inmate shall receive the above specified monthly credits
for the class to which he or she is assigned. In determining the
prior criminal history of the inmate, the Department of Corrections
shall review criminal history records available through the Oklahoma
State Bureau of Investigation, Federal Bureau of Investigation, and
National Crime Information Center to determine the reported felony
convictions of all inmates. The Department of Corrections shall
also review the Office of Juvenile Affairs Juvenile On-line Tracking
System for inmates who were adjudicated delinquent or convicted as a
youthful offender for a crime that would be an offense enumerated in
subsection E of this section.

3. In addition to the criteria established for each class in
paragraph 1 of this subsection, the following requirements shall
apply to each of levels 2 through 4:

a. satisfactory participation in the work, education, or
program assignment at the standard required for the
particular class level,

- b. maintenance of a clean and orderly living area and personal hygiene at the standard required for the particular class level,
- c. cooperative behavior toward facility staff and other inmates, and
- d. satisfactory participation in the requirements of the previous class level.

4. The evaluation scale for assessing performance shall be as follows:

- a. Outstanding - For inmates who display consistently exceptional initiative, motivation, and work habits.
- b. Excellent - For inmates who display above-average work habits with only minor errors and rarely perform below expectations.
- c. Good - For inmates who perform in a satisfactory manner and complete tasks as required, doing what is expected, with only occasional performance above or below expectations.
- d. Fair - For inmates who may perform satisfactorily for some periods of time, but whose performance is marked by obviously deficient and weak areas and could be improved.
- e. Poor - For inmates whose performance is unsatisfactory and falls below expected and acceptable standards.

1 E. No person ever convicted as an adult or a youthful offender
2 or adjudicated delinquent as a juvenile in this state for any felony
3 offense enumerated in this subsection or a similar felony offense
4 pursuant to the provisions of another state, the United States, or a
5 military court shall be eligible for the credits provided by the
6 provisions of subparagraph c of paragraph 2 of subsection D of this
7 section.

8 1. Assault, battery, or assault and battery with a dangerous
9 weapon as defined by Section 645, subsection C of Section 652 of
10 Title 21 or Section 2-219 of Title 43A of the Oklahoma Statutes;

11 2. Aggravated assault and battery on a police officer, sheriff,
12 highway patrolman, or any other officer of the law as defined by
13 Section 650, subsection C of Section 650.2, 650.5, subsection B of
14 Section 650.6, or subsection C of Section 650.7 of Title 21 of the
15 Oklahoma Statutes;

16 3. Poisoning with intent to kill as defined by Section 651 of
17 Title 21 of the Oklahoma Statutes;

18 4. Shooting with intent to kill as defined by Section 652 of
19 Title 21 of the Oklahoma Statutes;

20 5. Assault with intent to kill as defined by Section 653 of
21 Title 21 of the Oklahoma Statutes;

22 6. Assault with intent to commit a felony as defined by Section
23 681 of Title 21 of the Oklahoma Statutes;

1 7. Assaults while masked or disguised as defined by Section
2 1303 of Title 21 of the Oklahoma Statutes;

3 8. Entering premises of another while masked as defined by
4 Section 1302 of Title 21 of the Oklahoma Statutes;

5 9. Murder in the first degree as defined by Section 701.7 of
6 Title 21 of the Oklahoma Statutes;

7 10. Solicitation for Murder in the first degree as defined by
8 Section 701.16 of Title 21 of the Oklahoma Statutes;

9 11. Murder in the second degree as defined by Section 701.8 of
10 Title 21 of the Oklahoma Statutes;

11 12. Manslaughter in the first degree as defined by Section 711
12 or 712 of Title 21 of the Oklahoma Statutes;

13 13. Manslaughter in the second degree as defined by Section 716
14 or 717 of Title 21 of the Oklahoma Statutes;

15 14. Kidnapping as defined by Section 741 of Title 21 of the
16 Oklahoma Statutes;

17 15. Burglary in the first degree as defined by Section 1431 of
18 Title 21 of the Oklahoma Statutes;

19 16. Burglary with explosives as defined by Section 1441 of
20 Title 21 of the Oklahoma Statutes;

21 17. Kidnapping for extortion as defined by Section 745 of Title
22 21 of the Oklahoma Statutes;

23 18. Maiming as defined by Section 751 of Title 21 of the
24 Oklahoma Statutes;

1 19. Robbery as defined by Section 791 of Title 21 of the
2 Oklahoma Statutes;

3 20. Robbery in the first degree as defined by Section 797 of
4 Title 21 of the Oklahoma Statutes;

5 21. Robbery in the second degree as defined by Section 797 of
6 Title 21 of the Oklahoma Statutes;

7 22. Armed robbery as defined by Section 801 of Title 21 of the
8 Oklahoma Statutes;

9 23. Robbery by two or more persons as defined by Section 800 of
10 Title 21 of the Oklahoma Statutes;

11 24. Robbery with dangerous weapon or imitation firearm as
12 defined by Section 801 of Title 21 of the Oklahoma Statutes;

13 25. Any crime against a child provided for in Section 843.5 of
14 Title 21 of the Oklahoma Statutes;

15 26. Wiring any equipment, vehicle or structure with explosives
16 as defined by Section 849 of Title 21 of the Oklahoma Statutes;

17 27. Forcible sodomy as defined by Section 888 of Title 21 of
18 the Oklahoma Statutes;

19 28. Rape in the first degree as defined by Sections 1111 and
20 1114 of Title 21 of the Oklahoma Statutes;

21 29. Rape in the second degree as defined by Sections 1111 and
22 1114 of Title 21 of the Oklahoma Statutes;

23 30. Rape by instrumentation as defined by Section 1111.1 of
24 Title 21 of the Oklahoma Statutes;

1 31. Lewd or indecent proposition or lewd or indecent act with a
2 child as defined by Section 1123 of Title 21 of the Oklahoma
3 Statutes;

4 32. Sexual battery of a person over 16 as defined by Section
5 1123 of Title 21 of the Oklahoma Statutes;

6 33. Use of a firearm or offensive weapon to commit or attempt
7 to commit a felony as defined by Section 1287 of Title 21 of the
8 Oklahoma Statutes;

9 34. Pointing firearms as defined by Section 1289.16 of Title 21
10 of the Oklahoma Statutes;

11 35. Rioting as defined by Section 1311 or 1321.8 of Title 21 of
12 the Oklahoma Statutes;

13 36. Inciting to riot as defined by Section 1320.2 of Title 21
14 of the Oklahoma Statutes;

15 37. Arson in the first degree as defined by Section 1401 of
16 Title 21 of the Oklahoma Statutes;

17 38. Endangering human life during arson as defined by Section
18 1405 of Title 21 of the Oklahoma Statutes;

19 39. Injuring or burning public buildings as defined by Section
20 349 of Title 21 of the Oklahoma Statutes;

21 40. Sabotage as defined by Section 1262, 1265.4 or 1265.5 of
22 Title 21 of the Oklahoma Statutes;

23 41. Extortion as defined by Section 1481 or 1486 of Title 21 of
24 the Oklahoma Statutes;

1 42. Obtaining signature by extortion as defined by Section 1485
2 of Title 21 of the Oklahoma Statutes;

3 43. Seizure of a bus, discharging firearm or hurling missile at
4 bus as defined by Section 1903 of Title 21 of the Oklahoma Statutes;

5 44. Mistreatment of a vulnerable adult as defined by Section
6 843.1 of Title 21 of the Oklahoma Statutes;

7 45. Sex offender providing services to a child as defined by
8 Section 404.1 of Title 10 of the Oklahoma Statutes;

9 46. A felony offense of domestic abuse as defined by subsection
10 C of Section 644 of Title 21 of the Oklahoma Statutes;

11 47. Prisoner placing body fluid on government employee as
12 defined by Section 650.9 of Title 21 of the Oklahoma Statutes;

13 48. Poisoning food or water supply as defined by Section 832 of
14 Title 21 of the Oklahoma Statutes;

15 49. Trafficking in children as defined by Section 866 of Title
16 21 of the Oklahoma Statutes;

17 50. Incest as defined by Section 885 of Title 21 of the
18 Oklahoma Statutes;

19 51. Procure, produce, distribute, or possess ~~juvenile~~
20 ~~pornography~~ child sexual abuse material as defined by Section 1021.2
21 of Title 21 of the Oklahoma Statutes;

22 52. Parental consent to ~~juvenile pornography~~ child sexual abuse
23 material as defined by Section 1021.3 of Title 21 of the Oklahoma
24 Statutes;

1 53. Soliciting minor for indecent exposure as defined by
2 Section 1021 of Title 21 of the Oklahoma Statutes;

3 54. Distributing obscene material or child ~~pornography~~ sexual
4 abuse material as defined by Section 1040.13 of Title 21 of the
5 Oklahoma Statutes;

6 55. Child sex trafficking as defined by Section 1030 of Title
7 21 of the Oklahoma Statutes;

8 56. Procuring a minor for child sex trafficking or other lewd
9 acts as defined by Section 1087 of Title 21 of the Oklahoma
10 Statutes;

11 57. Transporting a child under eighteen (18) years of age for
12 purposes of child sex trafficking as defined by Section 1087 of
13 Title 21 of the Oklahoma Statutes;

14 58. Inducing a minor to engage in child sex trafficking as
15 defined by Section 1088 of Title 21 of the Oklahoma Statutes;

16 59. A felony offense of stalking as defined by subsection D of
17 Section 1173 of Title 21 of the Oklahoma Statutes;

18 60. Spread of infectious diseases as defined by Section 1192 of
19 Title 21 of the Oklahoma Statutes;

20 61. Advocate overthrow of government by force, commit or
21 attempt to commit acts to overthrow the government, organize or
22 provide assistance to groups to overthrow the government as defined
23 by Section 1266, 1266.4 or 1267.1 of Title 21 of the Oklahoma
24 Statutes;

1 62. Feloniously discharging a firearm as defined by Section
2 1289.17A of Title 21 of the Oklahoma Statutes;

3 63. Possession, use, manufacture, or threat of incendiary
4 device as defined by Section 1767.1 of Title 21 of the Oklahoma
5 Statutes;

6 64. Causing a personal injury accident while driving under the
7 influence as defined by Section 11-904 of Title 47 of the Oklahoma
8 Statutes; or

9 65. Using a motor vehicle to facilitate the discharge of a
10 firearm as defined by Section 652 of Title 21 of the Oklahoma
11 Statutes.

12 F. The policy and procedure developed by the Department of
13 Corrections shall include provisions for adjustment review
14 committees of not less than three members for each such committee.
15 Each committee shall consist of a classification team supervisor who
16 shall act as chairman, the case manager for the inmate being
17 reviewed or classified, a correctional officer or inmate counselor,
18 and not more than two other members, if deemed necessary, determined
19 pursuant to policy and procedure to be appropriate for the specific
20 adjustment review committee or committees to which they are
21 assigned. At least once every four (4) months the adjustment review
22 committee for each inmate shall evaluate the class level status and
23 performance of the inmate and determine whether or not the class
24 level for the inmate should be changed.

1 Any inmate who feels aggrieved by a decision made by an
2 adjustment review committee may utilize normal grievance procedures
3 in effect with the Department of Corrections and in effect at the
4 facility in which the inmate is incarcerated.

5 G. Inmates granted medical leaves for treatment that cannot be
6 furnished at the penal institution where incarcerated shall be
7 allowed the time spent on medical leave as time served. Any inmate
8 placed into administrative segregation for nondisciplinary reasons
9 by the institution's administration may be placed in Class 2. The
10 length of any jail term served by an inmate before being transported
11 to a state correctional institution pursuant to a judgment and
12 sentence of incarceration shall be deducted from the term of
13 imprisonment at the state correctional institution. Inmates
14 sentenced to the Department of Corrections and detained in a county
15 jail as a result of the Department's reception scheduling procedure
16 shall be awarded earned credits as provided for in subparagraph b of
17 paragraph 1 of subsection D of this section, beginning on the date
18 of the judgment and sentence, unless the inmate is convicted of a
19 misdemeanor or felony committed in the jail while the inmate is
20 awaiting transport to the Lexington Assessment and Reception Center
21 or other assessment and reception location determined by the
22 Director of the Department of Corrections.

23 H. Additional achievement earned credits for successful
24 completion of departmentally approved programs or for attaining

1 goals or standards set by the Department shall be awarded as
2 follows:

3 Bachelor's degree.....200 credits;
4 Associate's degree.....100 credits;
5 High School Diploma or High School
6 Equivalency Diploma.....90 credits;
7 Certification of Completion of
8 Vocational Training.....80 credits;
9 Successful completion of
10 Alcohol/Chemical Abuse Treatment
11 Program of not less than four (4)
12 months continuous participation.....70 credits;
13 Successful completion of other
14 Educational Accomplishments or
15 other programs not specified in
16 this subsection.....10-30 credits;

17 Achievement earned credits are subject to loss and restoration in
18 the same manner as earned credits.

19 I. The accumulated time of every inmate shall be tallied
20 monthly and maintained by the institution where the term of
21 imprisonment is being served. A record of said accumulated time
22 shall be:

23 1. Sent to the administrative office of the Department of
24 Corrections on a quarterly basis; and

2. Provided to the inmate.

SECTION 18. AMENDATORY 57 O.S. 2021, Section 332.16, as amended by Section 12, Chapter 151, O.S.L. 2024 (57 O.S. Supp. 2024, Section 332.16), is amended to read as follows:

Section 332.16. A. No recommendation to the Governor for parole shall remain under consideration and in the possession of that office for a time longer than thirty (30) consecutive calendar days. Except as provided for in subsection B of this section, if upon expiration of the thirty-day time period no action is taken by the Governor to grant or deny parole, the recommendation for parole shall be deemed granted.

B. The Governor shall be required to review each parole recommendation and shall grant or deny parole for persons convicted of the following crimes:

1. Assault, battery, or assault and battery with a dangerous or deadly weapon as provided in Sections 645 and 652 of Title 21 of the Oklahoma Statutes;

2. Aggravated assault and battery on a police officer, sheriff, highway patrolman, or any other officer of the law as provided in Sections 650, 650.2, 650.5, 650.6 and 650.7 of Title 21 of the Oklahoma Statutes;

3. Poisoning with intent to kill as provided in Section 651 of Title 21 of the Oklahoma Statutes;

- 1 4. Shooting with intent to kill as provided in Section 652 of
2 Title 21 of the Oklahoma Statutes;
- 3 5. Assault with intent to kill as provided in Section 653 of
4 Title 21 of the Oklahoma Statutes;
- 5 6. Assault with intent to commit a felony as provided in
6 Section 681 of Title 21 of the Oklahoma Statutes;
- 7 7. Assaults while masked or disguised as provided in Section
8 1303 of Title 21 of the Oklahoma Statutes;
- 9 8. Murder in the first degree as provided in Section 701.7 of
10 Title 21 of the Oklahoma Statutes;
- 11 9. Murder in the second degree as provided in Section 701.8 of
12 Title 21 of the Oklahoma Statutes;
- 13 10. Manslaughter in the first degree as provided in Section 711
14 or 712 of Title 21 of the Oklahoma Statutes;
- 15 11. Manslaughter in the second degree as provided in Sections
16 716 and 717 of Title 21 of the Oklahoma Statutes;
- 17 12. Kidnapping as provided in Section 741 of Title 21 of the
18 Oklahoma Statutes;
- 19 13. Burglary in the first degree as provided in Section 1431 of
20 Title 21 of the Oklahoma Statutes;
- 21 14. Burglary with explosives as provided in Section 1441 of
22 Title 21 of the Oklahoma Statutes;
- 23 15. Kidnapping for extortion as provided in Section 745 of
24 Title 21 of the Oklahoma Statutes;

1 16. Maiming as provided in Section 751 of Title 21 of the
2 Oklahoma Statutes;

3 17. Robbery as provided in Section 791 of Title 21 of the
4 Oklahoma Statutes;

5 18. Robbery in the first degree as provided in Section 797 of
6 Title 21 of the Oklahoma Statutes;

7 19. Robbery in the second degree as provided in Section 797 of
8 Title 21 of the Oklahoma Statutes;

9 20. Robbery by two or more persons as provided in Section 800
10 of Title 21 of the Oklahoma Statutes;

11 21. Robbery with dangerous weapon or imitation firearm as
12 provided in Section 801 of Title 21 of the Oklahoma Statutes;

13 22. Child abuse as provided in Section 843.5 of Title 21 of the
14 Oklahoma Statutes;

15 23. Wiring any equipment, vehicle or structure with explosives
16 as provided in Section 849 of Title 21 of the Oklahoma Statutes;

17 24. Forcible sodomy as provided in Section 888 of Title 21 of
18 the Oklahoma Statutes;

19 25. Rape in the first degree as provided in Sections 1111 and
20 1114 of Title 21 of the Oklahoma Statutes;

21 26. Rape in the second degree as provided in Sections 1111 and
22 1114 of Title 21 of the Oklahoma Statutes;

23 27. Rape by instrumentation as provided in Section 1111.1 of
24 Title 21 of the Oklahoma Statutes;

1 28. Lewd or indecent proposition or lewd or indecent act with a
2 child as provided in Section 1123 of Title 21 of the Oklahoma
3 Statutes;

4 29. Use of a firearm or offensive weapon to commit or attempt
5 to commit a felony as provided in Section 1287 of Title 21 of the
6 Oklahoma Statutes;

7 30. Pointing firearms as provided in Section 1289.16 of Title
8 21 of the Oklahoma Statutes;

9 31. Rioting as provided in Sections 1311 and 1321.8 of Title 21
10 of the Oklahoma Statutes;

11 32. Inciting to riot as provided in Section 1320.2 of Title 21
12 of the Oklahoma Statutes;

13 33. Arson in the first degree as provided in Section 1401 of
14 Title 21 of the Oklahoma Statutes;

15 34. Injuring or burning public buildings as provided in Section
16 349 of Title 21 of the Oklahoma Statutes;

17 35. Sabotage as provided in Sections 1262, 1265.4 and 1265.5 of
18 Title 21 of the Oklahoma Statutes;

19 36. Criminal syndicalism as provided in Section 1261 of Title
20 21 of the Oklahoma Statutes;

21 37. Extortion as provided in Sections 1481 and 1486 of Title 21
22 of the Oklahoma Statutes;

23 38. Obtaining signature by extortion as provided in Section
24 1485 of Title 21 of the Oklahoma Statutes;

1 39. Seizure of a bus, discharging firearm or hurling missile at
2 bus as provided in Section 1903 of Title 21 of the Oklahoma
3 Statutes;

4 40. Mistreatment of a mental patient as provided in Section
5 843.1 of Title 21 of the Oklahoma Statutes;

6 41. Using a vehicle to facilitate the discharge of a weapon as
7 provided in Section 652 of Title 21 of the Oklahoma Statutes;

8 42. Aggravated drug trafficking as provided in Section 2-415 of
9 Title 63 of the Oklahoma Statutes;

10 43. Racketeering as provided in Section 1403 of Title 22 of the
11 Oklahoma Statutes;

12 44. Offenses of public corruption such as bribery of public
13 officials as provided in Section 381 or 382 of Title 21 of the
14 Oklahoma Statutes;

15 45. Embezzlement of public money as provided in Section 1451 et
16 seq. of Title 21 or Section 641 of Title 19 of the Oklahoma
17 Statutes;

18 46. Failure to pay and collect tax as provided in Section 1361
19 or 2385.3 of Title 68 of the Oklahoma Statutes;

20 47. Conspiracy to defraud the state as provided in Section 424
21 of Title 21 of the Oklahoma Statutes;

22 48. Child ~~pornography~~ sexual abuse material as provided in
23 Section 1021.2 or 1021.3 or defined in Section 1024.1 of Title 21 of
24 the Oklahoma Statutes;

1 49. Child sex trafficking as defined by Section 1030 of Title
2 21 of the Oklahoma Statutes;

3 50. Abuse of a vulnerable adult as defined in Section 10-103 of
4 Title 43A of the Oklahoma Statutes;

5 51. Terrorism crimes, including biochemical assault as provided
6 in Section 1268 of Title 21 of the Oklahoma Statutes;

7 52. Trafficking of children as provided in Section 865 et seq.
8 of Title 21 of the Oklahoma Statutes; or

9 53. Trafficking of humans as provided in Section 748 et seq. of
10 Title 21 of the Oklahoma Statutes.

11 C. When the Pardon and Parole Board makes a recommendation for
12 a compassionate parole pursuant to subsection B of Section 332.18 of
13 this title, the Board shall forward all relevant documentation to
14 the Governor within four (4) business days of the parole review of
15 the inmate. Upon receipt, the Governor shall have four (4) business
16 days to grant or deny the compassionate parole.

17 SECTION 19. AMENDATORY 57 O.S. 2021, Section 571, as
18 last amended by Section 13, Chapter 151, O.S.L. 2024 (57 O.S. Supp.
19 2024, Section 571), is amended to read as follows:

20 Section 571. As used in the Oklahoma Statutes, unless another
21 definition is specified:

22 1. "Capacity" means the actual available bedspace as certified
23 by the State Board of Corrections subject to applicable federal and
24

1 state laws and the rules and regulations promulgated under such
2 laws; and

3 2. "Violent crime" means any of the following felony offenses
4 and any attempts to commit or conspiracy or solicitation to commit
5 the following crimes:

6 a. assault, battery, or assault and battery with a
7 dangerous or deadly weapon, as provided for in
8 Sections 645 and 652 of Title 21 of the Oklahoma
9 Statutes,

10 b. assault, battery, or assault and battery with a deadly
11 weapon or by other means likely to produce death or
12 great bodily harm, as provided for in Section 652 of
13 Title 21 of the Oklahoma Statutes,

14 c. aggravated assault and battery on a police officer,
15 sheriff, highway patrolman, or any other officer of
16 the law, as provided for in Section 650 of Title 21 of
17 the Oklahoma Statutes,

18 d. poisoning with intent to kill, as provided for in
19 Section 651 of Title 21 of the Oklahoma Statutes,

20 e. shooting with intent to kill, as provided for in
21 Section 652 of Title 21 of the Oklahoma Statutes,

22 f. assault with intent to kill, as provided for in
23 Section 653 of Title 21 of the Oklahoma Statutes,
24

- g. assault with intent to commit a felony, as provided for in Section 681 of Title 21 of the Oklahoma Statutes,
- h. assaults with a dangerous weapon while masked or disguised, as provided for in Section 1303 of Title 21 of the Oklahoma Statutes,
- i. murder in the first degree, as provided for in Section 701.7 of Title 21 of the Oklahoma Statutes,
- j. murder in the second degree, as provided for in Section 701.8 of Title 21 of the Oklahoma Statutes,
- k. manslaughter in the first degree, as provided for in Section 711 of Title 21 of the Oklahoma Statutes,
- l. manslaughter in the second degree, as provided for in Section 716 of Title 21 of the Oklahoma Statutes,
- m. kidnapping, as provided for in Section 741 of Title 21 of the Oklahoma Statutes,
- n. burglary in the first degree, as provided for in Section 1431 of Title 21 of the Oklahoma Statutes,
- o. burglary with explosives, as provided for in Section 1441 of Title 21 of the Oklahoma Statutes,
- p. kidnapping for extortion, as provided for in Section 745 of Title 21 of the Oklahoma Statutes,
- q. maiming, as provided for in Section 751 of Title 21 of the Oklahoma Statutes,

- r. robbery, as provided for in Section 791 of Title 21 of the Oklahoma Statutes,
- s. robbery in the first degree, as provided for in Section 797 et seq. of Title 21 of the Oklahoma Statutes,
- t. robbery in the second degree, as provided for in Section 797 et seq. of Title 21 of the Oklahoma Statutes,
- u. armed robbery, as provided for in Section 801 of Title 21 of the Oklahoma Statutes,
- v. robbery by two or more persons, as provided for in Section 800 of Title 21 of the Oklahoma Statutes,
- w. robbery with dangerous weapon or imitation firearm, as provided for in Section 801 of Title 21 of the Oklahoma Statutes,
- x. child abuse, as provided for in Section 843.5 of Title 21 of the Oklahoma Statutes,
- y. wiring any equipment, vehicle or structure with explosives, as provided for in Section 849 of Title 21 of the Oklahoma Statutes,
- z. forcible sodomy, as provided for in Section 888 of Title 21 of the Oklahoma Statutes,
- aa. rape in the first degree, as provided for in Section 1114 of Title 21 of the Oklahoma Statutes,

- 1 bb. rape in the second degree, as provided for in Section
2 1114 of Title 21 of the Oklahoma Statutes,
3 cc. rape by instrumentation, as provided for in Section
4 1111.1 of Title 21 of the Oklahoma Statutes,
5 dd. lewd or indecent proposition or lewd or indecent act
6 with a child under sixteen (16) years of age, as
7 provided for in Section 1123 of Title 21 of the
8 Oklahoma Statutes,
9 ee. use of a firearm or offensive weapon to commit or
10 attempt to commit a felony, as provided for in Section
11 1287 of Title 21 of the Oklahoma Statutes,
12 ff. pointing firearms, as provided for in Section 1289.16
13 of Title 21 of the Oklahoma Statutes,
14 gg. rioting, as provided for in Section 1311 of Title 21
15 of the Oklahoma Statutes,
16 hh. inciting to riot, as provided for in Section 1320.2 of
17 Title 21 of the Oklahoma Statutes,
18 ii. arson in the first degree, as provided for in Section
19 1401 of Title 21 of the Oklahoma Statutes,
20 jj. injuring or burning public buildings, as provided for
21 in Section 349 of Title 21 of the Oklahoma Statutes,
22 kk. sabotage, as provided for in Section 1262 of Title 21
23 of the Oklahoma Statutes,
24

11. criminal syndicalism, as provided for in Section 1261
of Title 21 of the Oklahoma Statutes,
mm. extortion, as provided for in Section 1481 of Title 21
of the Oklahoma Statutes,
nn. obtaining signature by extortion, as provided for in
Section 1485 of Title 21 of the Oklahoma Statutes,
oo. seizure of a bus, discharging firearm or hurling
missile at bus, as provided for in Section 1903 of
Title 21 of the Oklahoma Statutes,
pp. mistreatment of a mental patient, as provided for in
Section 843.1 of Title 21 of the Oklahoma Statutes,
qq. using a vehicle to facilitate the discharge of a
weapon pursuant to Section 652 of Title 21 of the
Oklahoma Statutes,
rr. bombing offenses as defined in Section 1767.1 of Title
21 of the Oklahoma Statutes,
ss. child ~~pornography~~ sexual abuse material or aggravated
child ~~pornography~~ sexual abuse material as defined in
Section 1021.2, 1021.3, 1024.1 or 1040.12a of Title 21
of the Oklahoma Statutes,
tt. child sex trafficking as defined in Section 1030 of
Title 21 of the Oklahoma Statutes,
uu. abuse of a vulnerable adult as defined in Section 10-
103 of Title 43A of the Oklahoma Statutes,

1 vv. aggravated trafficking as provided for in subsection C
2 of Section 2-415 of Title 63 of the Oklahoma Statutes,
3 ww. aggravated assault and battery upon any person
4 defending another person from assault and battery, as
5 provided for in Section 646 of Title 21 of the
6 Oklahoma Statutes,
7 xx. human trafficking, as provided for in Section 748 of
8 Title 21 of the Oklahoma Statutes,
9 yy. terrorism crimes as provided in Section 1268 et seq.
10 of Title 21 of the Oklahoma Statutes,
11 zz. eluding a peace officer, as provided for in subsection
12 B or C of Section 540A of Title 21 of the Oklahoma
13 Statutes, or
14 aaa. domestic abuse by strangulation, domestic assault with
15 a dangerous weapon, domestic assault and battery with
16 a dangerous weapon, domestic assault and battery
17 resulting in great bodily injury, or domestic assault
18 and battery with a deadly weapon, as provided for in
19 Section 644 of Title 21 of the Oklahoma Statutes.

20 Such offenses shall constitute exceptions to nonviolent offenses
21 pursuant to Article VI, Section 10 of the Oklahoma Constitution.

22 SECTION 20. AMENDATORY 57 O.S. 2021, Section 582, as
23 amended by Section 14, Chapter 151, O.S.L. 2024 (57 O.S. Supp. 2024,
24 Section 582), is amended to read as follows:

1 Section 582. A. The provisions of the Sex Offenders
2 Registration Act shall apply to any person residing, working or
3 attending school within the State of Oklahoma who, after November 1,
4 1989, has been convicted, whether upon a verdict or plea of guilty
5 or upon a plea of nolo contendere, or received a suspended sentence
6 or any probationary term, or is currently serving a sentence or any
7 form of probation or parole for a crime or an attempt to commit a
8 crime provided for in Section 843.5 of Title 21 of the Oklahoma
9 Statutes if the offense involved sexual abuse or sexual exploitation
10 as those terms are defined in Section 1-1-105 of Title 10A of the
11 Oklahoma Statutes, Section 681, if the offense involved sexual
12 assault, 741, if the offense involved sexual abuse or sexual
13 exploitation, Section 748, if the offense involved human trafficking
14 for commercial sex, Section 843.1, if the offense involved sexual
15 abuse or sexual exploitation, Section 852.1, if the offense involved
16 sexual abuse of a child, 856, if the offense involved child sex
17 trafficking or human trafficking for commercial sex, 865 et seq.,
18 885, 886, 888, 891, if the offense involved sexual abuse or sexual
19 exploitation, 1021, 1021.2, 1021.3, 1024.2, 1029, if the offense
20 involved child sex trafficking, 1040.8, if the offense involved
21 child ~~pornography~~ sexual abuse material, 1040.12a, 1040.13,
22 1040.13a, 1087, 1088, 1111.1, 1114 or 1123 of Title 21 of the
23 Oklahoma Statutes.

1 B. The provisions of the Sex Offenders Registration Act shall
2 apply to any person who after November 1, 1989, resides, works or
3 attends school within the State of Oklahoma and who has been
4 convicted or received a suspended sentence at any time in any court
5 of another state, the District of Columbia, Puerto Rico, Guam,
6 American Samoa, the Northern Mariana Islands and the United States
7 Virgin Islands, a federal court, an Indian tribal court, a military
8 court, or a court of a foreign country for a crime, attempted crime
9 or a conspiracy to commit a crime which, if committed or attempted
10 in this state, would be a crime, an attempt to commit a crime or a
11 conspiracy to commit a crime provided for in any of the laws listed
12 in subsection A of this section.

13 C. The provisions of the Sex Offenders Registration Act shall
14 apply to any person who resides, works or attends school within the
15 State of Oklahoma and who has received a deferred judgment at any
16 time in any court of another state, the District of Columbia, Puerto
17 Rico, Guam, American Samoa, the Northern Mariana Islands and the
18 United States Virgin Islands, a federal court, an Indian tribal
19 court, a military court, or a court of a foreign country for a
20 crime, attempted crime or a conspiracy to commit a crime which, if
21 committed or attempted or conspired to be committed in this state,
22 would be a crime, an attempt to commit a crime or a conspiracy to
23 commit a crime provided for in Section 843.5 of Title 21 of the
24 Oklahoma Statutes if the offense involved sexual abuse or sexual

1 exploitation as those terms are defined in Section 1-1-105 of Title
2 10A of the Oklahoma Statutes, Section 681, if the offense involved
3 sexual assault, 741, if the offense involved sexual abuse or sexual
4 exploitation, Section 748, if the offense involved human trafficking
5 for commercial sex, Section 843.1, if the offense involved sexual
6 abuse or sexual exploitation, Section 852.1, if the offense involved
7 sexual abuse of a child, 856, if the offense involved child sex
8 trafficking or human trafficking for commercial sex, 865 et seq.,
9 885, 886, 888, 891, if the offense involved sexual abuse or sexual
10 exploitation, 1021, 1021.2, 1021.3, 1024.2, 1029, if the offense
11 involved child sex trafficking, 1040.8, if the offense involved
12 child ~~pornography~~ sexual abuse material, 1040.12a, 1040.13,
13 1040.13a, 1087, 1088, 1111.1, 1114 or 1123 of Title 21 of the
14 Oklahoma Statutes. The provisions of the Sex Offenders Registration
15 Act shall not apply to any such person while the person is
16 incarcerated in a maximum or medium correctional institution of the
17 Department of Corrections.

18 D. On November 1, 2002, any person registered as a sex offender
19 pursuant to Section 741 of Title 21 of the Oklahoma Statutes shall
20 be summarily removed from the Sex Offender Registry by the
21 Department of Corrections and all law enforcement agencies of any
22 political subdivision of this state, unless the offense involved
23 sexual abuse or sexual exploitation.

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1 E. The provisions of the Sex Offenders Registration Act shall
2 not apply to any such person who has received a criminal history
3 records expungement for a conviction in another state for a crime or
4 attempted crime which, if committed or attempted in this state,
5 would be a crime or an attempt to commit a crime provided for in any
6 laws listed in subsection A of this section.

7 F. The provisions of the Sex Offenders Registration Act shall
8 apply to any person residing, working or attending school within
9 this state who, after the effective date of this act, has been
10 convicted, whether upon a verdict or plea of guilty or upon a plea
11 of nolo contendere, or received a suspended sentence or any
12 probationary term, or is currently serving a sentence or any form of
13 probation or parole for a crime or an attempt to commit a crime as
14 provided for in subsection G of Section 1040.13b of Title 21 of the
15 Oklahoma Statutes.

16 G. The provisions of the Sex Offenders Registration Act shall
17 apply to any person who resides, works or attends school within this
18 state and who has received a deferred judgment at any time in any
19 court of another state, the District of Columbia, Puerto Rico, Guam,
20 American Samoa, the Northern Mariana Islands and the United States
21 Virgin Islands, a federal court, an Indian tribal court, a military
22 court, or a court of a foreign country for a crime, if committed in
23 this state, would be a crime, as provided for in subsection F of
24 Section 1040.13b of Title 21 of the Oklahoma Statutes. The

1 provisions of the Sex Offenders Registration Act shall not apply to
2 any such person while the person is incarcerated in a maximum or
3 medium correctional institution of the Department of Corrections.

4 SECTION 21. AMENDATORY 74 O.S. 2021, Section 151.1, as
5 amended by Section 15, Chapter 151, O.S.L. 2024 (74 O.S. Supp. 2024,
6 Section 151.1), is amended to read as follows:

7 Section 151.1. A. The Oklahoma State Bureau of Investigation
8 shall establish an Internet Crimes Against Children (ICAC) Unit for
9 the primary purpose of investigating Internet crimes committed
10 against children, including, but not limited to, offenses related to
11 child ~~pornography~~ sexual abuse material and solicitation of minors
12 for ~~pornography~~ child sexual abuse material, prostitution, or sex-
13 related offenses, or child sex trafficking. The Unit shall
14 additionally promote safe Internet use among children and their
15 parents by various media or printed-material campaigns or by
16 offering educational programs to schools or communities throughout
17 this state. The Bureau shall employ sufficient employees to
18 investigate and implement the ICAC unit.

19 B. The Director of the Oklahoma State Bureau of Investigation
20 is hereby authorized to enter into local cooperative agreements with
21 local law enforcement agencies for the purpose of appointing ICAC
22 Affiliate Task Force Agents to assist the ICAC Unit of the Bureau.
23 ICAC Affiliate Task Force Agents shall be employees and commissioned
24 law enforcement officers of the local law enforcement agency

1 entering into agreement with the Oklahoma State Bureau of
2 Investigation and shall not be employees of the Bureau. ICAC
3 Affiliate Task Force Agents shall have general peace officer powers
4 and the authority to arrest persons throughout the state for the
5 purpose of investigating Internet crimes committed against children
6 including, but not limited to, offenses related to child ~~pornography~~
7 sexual abuse material, solicitation of minors for ~~pornography~~ child
8 sexual abuse material, prostitution, sex-related offenses, or child
9 sex trafficking. ICAC Affiliate Task Force Agents shall promote
10 safe Internet use among children and parents of children by various
11 media or printed-material campaigns or by offering educational
12 programs to schools or communities throughout Oklahoma. The
13 Director of the Bureau may renew, suspend or revoke any agreement
14 appointing an ICAC Affiliate Task Force Agent at any time. ICAC
15 Affiliate Task Force Agents serve solely at the discretion and will
16 of the Director of the Oklahoma State Bureau of Investigation.

17 SECTION 22. REPEALER 21 O.S. 2021, Section 13.1, as last
18 amended by Section 5, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2024,
19 Section 13.1), is hereby repealed.

20 SECTION 23. REPEALER 21 O.S. 2021, Section 843.5, as
21 last amended by Section 6, Chapter 59, O.S.L. 2024 (21 O.S. Supp.
22 2024, Section 843.5), is hereby repealed.

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1 SECTION 24. REPEALER 21 O.S. 2021, Section 1021.2, as
2 last amended by Section 9, Chapter 59, O.S.L. 2024 (21 O.S. Supp.
3 2024, Section 1021.2), is hereby repealed.

4 SECTION 25. REPEALER 21 O.S. 2021, Section 1024.1, as
5 amended by Section 14, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2024,
6 Section 1024.1), is hereby repealed.

7 SECTION 26. REPEALER 21 O.S. 2021, Section 1040.12a, as
8 amended by Section 20, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2024,
9 Section 1040.12a), is hereby repealed.

10 SECTION 27. REPEALER 22 O.S. 2021, Section 40, as last
11 amended by Section 34, Chapter 59, O.S.L. 2024 (22 O.S. Supp. 2024,
12 Section 40), is hereby repealed.

13 SECTION 28. REPEALER 22 O.S. 2021, Section 991h, as last
14 amended by Section 35, Chapter 59, O.S.L. 2024 (22 O.S. Supp. 2024,
15 Section 991h), is hereby repealed.

16 SECTION 29. REPEALER 57 O.S. 2021, Section 138, as last
17 amended by Section 38, Chapter 59, O.S.L. 2024 (57 O.S. Supp. 2024,
18 Section 138), is hereby repealed.

19 SECTION 30. REPEALER 57 O.S. 2021, Section 332.16, as
20 amended by Section 39, Chapter 59, O.S.L. 2024 (57 O.S. Supp. 2024,
21 Section 332.16), is hereby repealed.

22 SECTION 31. REPEALER 57 O.S. 2021, Section 571, as last
23 amended by Section 40, Chapter 59, O.S.L. 2024 (57 O.S. Supp. 2024,
24 Section 571), is hereby repealed.

1 SECTION 32. REPEALER 57 O.S. 2021, Section 582, as last
2 amended by Section 41, Chapter 59, O.S.L. 2024 (57 O.S. Supp. 2024,
3 Section 582), is hereby repealed.

4 SECTION 33. REPEALER 74 O.S. 2021, Section 151.1, as
5 last amended by Section 47, Chapter 59, O.S.L. 2024 (74 O.S. Supp.
6 2024, Section 151.1), is hereby repealed.

7 SECTION 34. This act shall become effective November 1, 2025.

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